

FOURTH SERIES
VOL. 131
No. 27



WEDNESDAY
18th MARCH, 2026

PARLIAMENTARY DEBATES

OFFICIAL REPORT

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*Published by Office of Chamber Reporting,
Parliament House, Accra.*

*Designed and Printed by Publishing Department,
Parliament House, Accra.*

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Wednesday, 18th March, 2026

*The House met at the Chamber,
Parliament House, at 1:38 p.m.*

[HON FIRST DEPUTY SPEAKER,
MR BERNARD AHIAFOR,
IN THE CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, let us turn to the item numbered 5, *Correction of Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS
AND THE OFFICIAL REPORT**

Mr First Deputy Speaker: We have the *Votes and Proceedings* of Tuesday, 17th March 2026, for correction.

Page 1...7—Yes, Mr Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, thank you so much for the opportunity. May I draw attention to the item numbered 5 (b) and with your kind indulgence, let me read: “Staff and pupils of ASDA Learning Centre from Adenta Consistency...”

My concern has to do with the reference made to the Constituency. It should be written as “Adentan” per our

records, so if that could be deleted and “Adentan” inserted.

Mr Speaker, again, the item 5 (c), which is on the page numbered 8, the name of one of the presiding officers of the group that visited yesterday, has been captured as Jones Amegashie Viglo. I know you know him very well; the name Amegashie Viglo is hyphenated.

Thank you.

Mr First Deputy Speaker: Table, take note. Yes, Hon Member?

Mr Baba Jamal Mohammed Ahmed: Mr Speaker, I am making reference to the page 6, the item numbered 4, my name has been included in the list of Members who were absent without permission.

Mr Speaker, I asked for permission to travel to Abuja. I officially sent my request to the Whip’s Office as required. So, I am surprised my name has been captured under Members who were absent without permission when I actually asked for permission. The permission spans from Monday till today.

Mr First Deputy Speaker: The leave of absence is supposed to be approved. So, if you sent the leave of absence to the Whips and same has not been transmitted for approval, the case may probably be that, having regard to numbers, they do not want you to travel.

So, the Table Office must find out whether your leave of absence has

actually been approved and transmitted, based on which we would be able to determine whether the records in the *Votes and Proceedings* captured it well or not. That is the procedure. You have to follow up and ensure that your leave of absence is approved before you travel. Since the Second Deputy Speaker is not around, I have been approving the leave of absence.

Page 9...31?

Hon Members, the *Votes and Proceedings* of Tuesday, 17th March, 2026, as corrected is hereby adopted as the true record of proceedings.

Yes, Majority Leadership?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, may we vary the order of Business and take the Motion numbered 31, so we can get the Report of the Committee presented and adopted.

Mr First Deputy Speaker: Yes, Available Leader?

Mr Jerry Ahmed Shaib: Mr Speaker, we are not opposed.

Mr First Deputy Speaker: Did you mention the Motion numbered 21?

Mr Dafeamekpor: Mr Speaker, respectfully, 31 and that of 36 is also for your notice.

Mr First Deputy Speaker: Very well. I seem to have a problem with my *Order Paper*.

Mr Dafeamekpor: Respectfully, the Motion numbered 31 is captured on page numbered 25 of the *Order Paper*. That is why I am proposing that we take it first.

Mr First Deputy Speaker: The Motion numbered 31, Minister for Finance.

BILL — SECOND READING

Ghana Deposit Protection (Amendment) Bill, 2025

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That the Ghana Deposit Protection (Amendment) Bill, 2025 be now read a Second time.

Mr First Deputy Speaker: I would call on the Chairperson of the Committee to present the Committee's Report.

Vice Chairperson of the Committee (Mr Richard Acheampong): Mr Speaker, thank you very much for the opportunity to present your Committee's Report.

Mr Speaker, I call on the *Hansard* to capture the entire Report as having been read, while I tease out a few important issues for the understanding of Members.

Introduction

The Ghana Deposit Protection (Amendment) Bill, 2025 was presented

and read the first time in Parliament on Thursday, 3rd July, 2025 by the Hon Minister responsible for Roads and Highways, Mr Kwame Govers Agbodza on behalf of the Hon Minister responsible for Finance pursuant to Article 106 (1) of the 1992 Constitution.

The Bill was subsequently referred to the Finance Committee for consideration and report to the House pursuant to Article 106 (4) of the 1992 Constitution and Standing Order 226 of Parliament. Leadership of the Committee on Economy and Development were directed to join the Finance Committee to consider the Bill.

The Committee as part of the consideration, met with the Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem, the Chief Director, Mr Patrick Nomo, the Director for the Financial Sector Division, Mr Louis Kwame Amo and other officials from the Ministry of Finance, the Ministry of Justice and Attorney-General's Department and the Ghana Deposit Protection Corporation.

References

The Committee was guided by the following documents during its deliberations:

- i. The 1992 Constitution of the Republic of Ghana
- ii. The Standing Orders of the Parliament of Ghana

- iii. The Ghana Deposit Protection Act, 2016 (Act 931) as amended by the Ghana Deposit Protection (Amendment) Act, 2018 (Act 968)

- iv. Payment Systems Act, 2019 (Act 987)

Background

The Ghana Deposit Protection Act, 2016 (Act 931) was enacted in 2016 to provide for the establishment of a Deposit Protection Scheme, a Deposit Protection Fund and a Deposit Protection Corporation and related matters. The Act was amended in 2018 as the Ghana Deposit Protection (Amendment) Act, 2018 (Act 968) mainly to seek an extension date for the commencement of the Deposit Protection Scheme, to make provision for funding of the expenses of the Corporation, to clearly name the mandate of the Scheme as a “paybox”, to enhance the functions of the Corporation and to amend the composition of the governing body of the Deposit Protection Corporation.

After the operationalisation of Act 931 and upon various consultations with stakeholders, it has become necessary to amend the Act again for the following reasons:

- i. To augment the relevance of the Deposit Protection Scheme to Ghana's financial safety net by enhancing the mandate and functions of the Corporation

- ii. To ensure that the Ghana Deposit Protection Scheme conforms to international best practice
- iii. To provide for emergency funding and fiscal backstop for the Corporation
- iv. To specifically provide for the coverage of electronic money and address certain deficiencies identified after years of operationalisation
- v. To give the Corporation the authority to issue rules, directives, guidelines, notices and circulars.

as the scope of the deposit insurance scheme is being enhanced to more effectively achieve its public policy objective.

Clause 2 amends section 3 of Act 931 to provide for the objects of the Scheme.

Clause 3 amends section 5 of Act 931 by inserting a new subsection (3) after subsection (2) to provide for an administrative penalty to be paid by a bank or a specialised deposit-taking institution that fails to display a copy of the certificate of membership at a conspicuous place at the main office of the bank or specialised deposit-taking institution and at each branch office, agency or outlet of the bank or specialised deposit-taking institution.

Objective of the Bill

The object of the Bill is to amend the Ghana Deposit Protection Act, 2016 (Act 931) to enable the Ghana Deposit Protection Corporation to better achieve the object of protecting depositors from loss as a result of the occurrence of an insured event; to support the development of a safe, sound, efficient and stable market-based financial system and to ensure that the Ghana Deposit Protection Scheme conforms to international best practice.

Content of the Bill

Clause 1 of the Bill amends section 2 of Act 931 by deleting the previous subsection (2) which stated that the mandate of the Scheme is to be a pay-box. This amendment is necessitated by the obsolescence of the original mandate,

Clause 4 amends section 6 of Act 931 by imposing an obligation on the Bank of Ghana to notify the Corporation of a request for the voluntary winding up of a member of the Scheme. The Bank of Ghana is also required to consider any outstanding premiums owed to the Corporation in determining whether the member of the Scheme can meet the obligation in respect of depositors and creditors. The amendment is to ensure that the Corporation is kept informed of the voluntary winding up of a member of the Scheme and also provide the Corporation with the opportunity to follow up on all premiums owed.

Clause 5 amends section 9 of Act 931 to include funding of other resolution options as determined by the Bank of Ghana.

Clause 6 amends section 10 of Act 931 which deals with the sources of money for the Protection Fund. The amendment is required to provide clarity and to distinguish between the sources of funds for the Corporation and those specifically allocated to the Deposit Protection Fund.

Clause 7 amends section 16 of Act 931 to delete subsection (3).

Clause 8 amends section 17 of Act 931 by the insertion of a new paragraph after paragraph (c) to provide for the announcement of the payment of compensation by the Corporation to include publication through any other medium that the Corporation considers necessary.

Clause 9 amends section 19 of Act 931 to bring more clarity to the process of the payment of compensation to depositors. It also provides for cooperation with the receiver on data required by the Corporation for speedy reimbursement.

Clause 10 replaces section 20 of Act 931 with a revised provision on coverage limits. The amendment is necessary because the current prescription of the coverage limits in the Act requires an amendment each time that the coverage limits are to be varied. The new provision mandates the Board to determine coverage limits by taking into consideration factors including the prevailing economic conditions, the capacity of the Fund, data concerning insured depositors and deposits, and any other information that the Board considers necessary.

Clause 11 inserts new sections 20A and 20B after section 20 of Act 931. Section 20A provides for the coverage of electronic money by the Scheme. The introduction of a provision on the coverage of electronic money is to specify the approach of the Corporation as regards the coverage of electronic money by the Scheme. Section 20B provides for the funding of other resolution options by the Scheme. The introduction of a provision on the funding of other resolution options by the Scheme is to ensure that the Corporation plays a more effective role in the resolution process, on condition that chosen options will end up in a viable institution and the cost of resolution follows the least cost option between a pay-out or funding of other resolution options.

Clause 12 amends section 21 of Act 931 to increase the administrative penalty for non-submission, incomplete or inaccurate submission or delays in the submission of information, data, statements or reports to the Corporation. The amendment is necessary because the current penalties are too low and therefore do not adequately deter the banks and specialised deposit-taking institutions from the commission of infractions related to data submission.

Clause 13 amends section 22 of Act 931 to avoid a reference to a repealed enactment.

Clause 14 amends section 24 of Act 931 to extend the functions of the Corporation to align with the new mandate and other provisions which

include contributing towards the funding of other resolution options determined by the Bank of Ghana and acting as a receiver were appointed by the Bank of Ghana and acting as an authorised agent of the Bank of Ghana, Ministry of Finance or other government agencies. This amendment is to ensure that the Corporation has the authority to execute the new mandate and functions.

Clause 15 amends section 26 of the Act to expand the functions of the Board of the Corporation to include the approval of the funding of other resolution options as determined by the Bank of Ghana and the approval of the maximum insured coverage limits for insured depositors.

Clause 16 amends section 27 of Act 931 to extend the tenure of office of a member of the Board from three years to four years as contained in other enactments. The amendment is necessary due to the steep learning curve associated with fully grasping the principles of deposit insurance, as three years is insufficient for Board members to acquire the relevant knowledge on deposit insurance and for the Corporation to benefit from their expertise. The current three-year tenure is considered too brief for such a specialised field.

Clause 17 replaces section 40 of Act 931 with an expanded provision on sources of funds of the Corporation which includes financial assistance from the Bank of Ghana. This amendment is necessary to clarify the sources of funds

for the Corporation and accommodate other new sources provided in this Bill.

Clause 18 inserts a new section 40A after section 40 of Act 931 to provide for the expenses of the Corporation to be charged onto the funds of the Corporation. The provision was originally captured under section 40(2) of the Act 931. All funds on which the expenses of the Corporation are to be charged have been captured in section 40 under sources of funds for the Corporation.

Clause 19 amends section 45 of Act 931 to allow enough time for the Board to, not later than the thirty-first day of December each year, cause to be prepared and approved, estimates of revenue and expenditure for the Corporation for the ensuing year.

Clause 20 replaces section 46 of Act 931 with a new provision on emergency or extraordinary funding. The amendment mandates government to provide the shortfall of the deposit insurance fund as emergency funding where the Deposit Protection Fund is inadequate to fund a preferred resolution option. The amendment also allows the Corporation to seek financial assistance from the Bank of Ghana as emergency funding.

Clause 21 replaces section 49 of Act 931 with a new provision on protection from liability and provision of indemnity. The amendment is to extend the protection from liability and to provide indemnity for a member or a

former member of the Board or a former officer of the Corporation.

Clause 22 inserts a new section 50A after section 50 of Act 931 to empower the Corporation to, in pursuance of the object of the Act, issue rules, directives, guidelines, notices and circulars that the Corporation considers necessary. The amendment is to ensure that provisions of the Act can always be given effect to through the issuance of rules, directives, guidelines, notices and circulars to member institutions. The amendment is also to provide for sanctions through the imposition of administrative penalties for non-compliance with issued rules, directives, guidelines, notices and circulars.

Clause 23 amends section 53 of Act 931 to delete words and phrases which are no longer used in the Act, to amend the definitions of certain words and phrases used in the Act and to incorporate into the Act, definitions of words and phrases used under the Bill.

Finally, *Clause 24* repeals section 54 of Act 931 which deals with transitional provisions.

Observations

Coverage Limits

The Committee is of the view that it is necessary to amend the Act to provide a specific mode of exercising the power of the Board to review coverage limits. Safeguards included in the Bill for the exercise of the power of the Board include the following:

- i. Consideration of some specific indicators in the review of coverage limits within specified timeframes
- ii. Consultation with the Ministry of Finance, the Bank of Ghana and industry in the review of coverage limits,
- iii. The power of the Minister to call for a review of coverage limits in certain critical financial and economic conditions.

The Bill also establishes a procedure for communicating any revisions to the coverage limits.

Coverage of Electronic Money

The Committee noted that the Bill aims to address the apparent silence of the current legislative regime on the mode of coverage of electronic money in spite of the fact that the coverage of electronic money is implied in the definition of deposits. Section 46 of the Payment Systems Act, 2019 (Act 987) provides that an electronic money holder is eligible for deposit protection under the Ghana Deposit Protection Act, 2016 (Act 931), if the balance of the account falls within the prescribed threshold under the Ghana Deposit Protection Act, 2016 (Act 931).

In this regard, the Bill seeks to amend the Act to provide specifically for the coverage of electronic money by the Scheme in a way that is operationally feasible. The Bill also seeks to authorise the Board to issue detailed guidelines for the coverage of e-money which can be

revised as and when relevant since this aspect of financial services is new and constantly changing.

Expanded Mandate

The Committee also noted that the enhancement of the mandate with the promulgation of the Bill will most importantly, shift the responsibility of funding bank failures from taxpayers to the industry. The additional functions will enhance the relevance of the deposit insurance scheme and the Corporation can also better achieve its objectives of protecting depositors and supporting the development of a stable market-based financial system.

Deposit insurance as a safety net pillar is still new in Ghana, and therefore there may be the need for the Corporation to issue rules, directives, guidelines, notices and circulars to member institutions to better operationalise the Act and this is one of the reasons the amendment is being sought.

Conclusion

The Committee has extensively deliberated on the policy objective of the Bill and is of the view that its passage would go a long way to improve Ghana's financial stability, protect depositors and support the development of a safe, sound, efficient and stable market-based financial sector.

The Committee accordingly recommends to the House to adopt its report, consider its proposed amendments in the Appendix and pass

the Ghana Deposit Protection (Amendment) Bill, 2025.

Respectfully submitted.

APPENDIX

GHANA DEPOSIT PROTECTION (AMENDMENT) BILL, 2025 AMENDMENTS PROPOSED

- i. Clause 3 — **Amendment Proposed** – Line 4, after “units” *insert* “and fifty penalty units for each day that the contravention continues”.

(Chairman of the Committee)

- ii. Clause 4 — **Amendment Proposed** – Paragraph (a), line 2, after “Scheme” *insert* “prior to the grant or otherwise of the request by the Bank of Ghana”

(Chairman of the Committee)

- iii. Clause 10 — **Amendment Proposed** – Subclause (6), line 3, after “members” *insert* “or depositors”

(Chairman of the Committee)

- iv. Clause 11 — **Amendment Proposed** — Section 20B, subsection (2), paragraph (a), *delete* and *insert* the following

“(a) the resolution will result in a viable and solvent restructured bank or specialised deposit-

taking institution that limits the exposure of the Corporation to additional funding in respect of the same entity; and”

(Chairman of the Committee)

- v. Clause 11 — **Amendment Proposed** — Section 20B, subsection (4), line 3, after “Bank of Ghana”, *delete* “is considering” and *insert* “has made a determination”

(Chairman of the Committee)

- vi. Clause 12 — **Amendment Proposed** — Closing phrase, line 3, after “thousand”, *insert* “penalty units” and in line 4, *delete* “offence” and *insert* “contravention”

(Chairman of the Committee)

- vii. Clause 20 — **Amendment Proposed** — Subclause (5), *delete* and *insert* the following:

“(5) Funds provided by the Government under subsection (4) shall be treated as a

(a) loan to the Corporation that is repayable over the period on terms agreed on by the parties; or

(b) grant.”

(Chairman of the Committee)

- viii. Clause 23 — **Amendment proposed** — Definition of “insurance company”, line 2, after “business” *insert* “under the Insurance Act, 2021 (Act 1061)”.

(Chairman of the Committee)

- ix. Clause 23 — **Amendment proposed** — Definition of “pension fund”, *delete* and *insert* the following:

““pension fund” means a private or public investment fund regulated by the National Pensions Regulatory Authority within the pension scheme, which is intended to accumulate during the working life of an individual from contributions and investment income, with the intention of providing income in retirement from the purchase of an annuity or in the form of a programmed withdrawal, with the possible option of an additional tax-free cash lump sum being paid to the individual;”.

(Chairman of the Committee)

Clause 23 — **Amendment proposed** — Definition of “retirement fund”, *delete* and *insert* the following:

““retirement fund” means an informal investment fund properly designated as a retirement fund, that is intended to accumulate during the working life of an individual from contributions and

investment income, with the intention of providing income in retirement from the purchase of an annuity or in the form of a programmed withdrawal.”.

(Chairman of the Committee)

I refer Members to the page numbered 2 of the Report, the item numbered 4.2. After the operationalisation of Act 931 and upon various consultations with stakeholders, it has become necessary to amend the Act again for the following reasons. That is to augment the relevance of the deposit protection scheme to Ghana's financial safety net by enhancing the mandates and functions of the Corporation. Two, to ensure that the Ghana Deposit Protection Scheme conforms with international best practices.

1:48 p.m.

Three, to provide for emergency funding and fiscal backstop for the corporation.

Four, to specifically provide for the coverage of electronic money and address certain deficiencies identified after years of operationalisation and the last one, to give the Corporation the authority to issue rules, directives, guidelines, notices, and circulars.

Mr Speaker, in conclusion, the Committee has extensively deliberated on the policy objective of the Bill and is of the view that its passage would go a long way to improve Ghana's financial

stability, protect depositors and support the development of a safe, sound, efficient and stable market-based financial sector.

Mr Speaker, I so submit.

Question proposed.

Second Deputy Minority Whip (Mr Jerry Ahmed Shaib): Mr Speaker, I think that it would be prudent to have hard copies for Members. I am trying to peruse and it is even difficult reading from the console because I see that we do not have copies. I do not know if the debate can be deferred a bit and then we can do any other Business and come back when same is shared. That is my humble prayer.

Mr First Deputy Speaker: Yes, Majority Leader, this is a prayer from the Minority. Though the Report will be on the console, let us just make provision for a few copies.

Hon Members, as you go through the Report, indulge me to acknowledge the presence of students from St. Anne Anglican School, led by Mahama Rarf, a teacher from Okaikwei Central Constituency, numbering 40.

[Students of St Anne Anglican school were acknowledged.]

Mr First Deputy Speaker: We also have Central Tongu Adolescent Health Club, led by Patience Kudu, a nurse from Central Tongu Constituency, they number 66.

[Members of Central Tongu Adolescent Health Club were acknowledged.]

Mr First Deputy Speaker: We also have Riches of Glory Academy, led by Alphonse Dumedah, Supervisor and they are from Ablekuma West, they number 75.

[Students of Riches of Glory Academy were acknowledged.]

Mr First Deputy Speaker: We have the divisional Chief of Mafi Traditional Area and Chief of Adidome, Togbe Kwasiyi Agyeman V in the House.

[Chiefs of Mafi Traditional Area and Adidome were acknowledged]

Mr First Deputy Speaker: We have Tublukope M/A Basic School, led by Kafui Awudi Larbi, head teacher. They are from the Ketu South Constituency, they number 74.

[Students of Tublukope M/A Basic school were acknowledged.]

Mr First Deputy Speaker: Hon Members, on your behalf, I welcome them to the Parliament of Ghana. May you have a fruitful visit. Thank you for coming.

Hon Members, can we proceed with the debate?

Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may we take one from each Side and add Leadership.

Mr First Deputy Speaker: The proposal is to take one from each Side and probably add Leadership.

Yes, Hon Eric Afful?

Mr Eric Afful (NDC — Amenfi West): Mr Speaker, let me thank you so much for the opportunity to make a contribution to the Report of the Finance Committee.

Mr Speaker, the Ghana Deposit Protection Act 2016, Act 931, has gone through a lot of transitions after its passage in 2016. It was amended in 2018 and was reintroduced in this House to be amended in 2024 and has been brought to Parliament again for this amendment to be done.

Mr Speaker, these amendments seek to enhance deposit protection, strengthen financial stability and align the scheme to the international best practices. These amendments, when properly implemented or done, one, will avoid the reoccurrence of using state resources for financial sector clean-ups, which cost the government about GHC30.3 billion but yet not solved or resolved. It still needs an amount of GHC10.3 billion to complete this clean-up exercise.

Mr Speaker, the Bill has introduced 24 amendments that include Ghana Deposit Protection Corporation to support the resolution options, such as pitches and

assumptions, break bands and restructuring.

Mr Speaker, two, introduction of emergency funding and fiscal backstop from Bank of Ghana and the Government. The introduction of coverage of electronic money (e-Money) to provide coverage limits to the scheme, rules and directives to the banks and the special deposit taking institutions by the Ghana Deposit Protection Corporation (GDPC).

Mr Speaker, the amendment gives more functions to the GDPC, administration enhancement whereby tenure of GDPC board members is moved from three years to four years. Ensuring compliance by banks and special deposit taking institutions.

Mr Speaker, the Bill has also introduced reforms. First, introducing reforms to align the International Association of Deposit Insurers core principles. Some of the reforms include enhanced financial sector credibility, also reduce taxpayers' exposure and finally to contribute to financial inclusion and stability.

Mr Speaker, I would therefore urge the House to adopt the Report and continue with this amendment to make this into law.

Thank you, Mr Speaker, for this opportunity.

Mr First Deputy Speaker: Hon Members, at the conclusion —

Yes, Hon Thomas Nyarko Ampem?

1:58 p.m.

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP): Mr Speaker, I thank you for the opportunity and to briefly add that this amendment is very necessary. The process started in 2024 and we had to re-look at it and to make sure that it conforms to current practices.

Mr Speaker, as has been explained, following the 2017-2019 banking sector clean-up, the need for an enhanced deposit protection scheme for Ghana became very important and we have realised that the current Ghana Deposit Protection Corporation Act focuses mainly on the Corporation being a pay box.

That means it focuses mainly on reimbursing an insured depositor after the failure of a member institution. The amendment is seeking to expand the function to allow the corporation to contribute to resolution options so that it does not only wait and pay for depositors who are insured.

Mr Speaker, the amendment is also taking into cognisance, the fact that e-Money has become prominent in our financial system today, so it explicitly provides for protection for balances in our wallets in case of any bank failure.

So, I want to encourage all of us to support this amendment and ensure that we strengthen the Ghana Deposit Protection Corporation to broaden their

mandate and to help them work effectively.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Thank you so much.

Hon Members, at the conclusion of the debate, I will put the Question.

Question put and Motion agreed to.

Ghana Deposit Protection (Amendment) Bill, 2025 accordingly read a Second time.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we take the Motion numbered 36, on page 28 of the *Order Paper*.

Mr First Deputy Speaker: Yes, Minority Leader, the application is to take the Motion numbered 36, the Value for Money Office Bill, 2026.

Osahen Afenyo-Markin: Mr Speaker, with respect, we do not have—*[Interruption]*. What did he bring? This is not—Please, this is the Ghana Deposit Protection (Amendment) Bill, 2025. He is now bringing the Report on the Value for Money Office Bill—

Mr First Deputy Speaker: Hon Minority Leader, on one breath, the House wants to go digital by asking that the Report should be uploaded onto the console, then on another breath, we want

to go the normal way to take a physical copy of the Report.

Osahen Afenyo-Markin: If it has been uploaded, there should be no problem.

Mr First Deputy Speaker: Yes, it has.

Osahen Afenyo-Markin: But, Mr Speaker, I cannot see the Minister of Finance here, this is his Bill—*[Interruption]*. No, Mr Speaker, that is not how Parliament functions. The Minister must give us good reasons for not being here, and that must be properly communicated.

Mr Speaker, the practice is not that the Deputy Minister will just show his face and then we would proceed to hear him. The Minister would have to communicate to Parliament why he is unable to attend upon Parliament.

Mr First Deputy Speaker: Yes, Leader, if we agree to take the Business and the Minister is not here, the Deputy Minister is here, so it is then that they can offer an explanation as to why the Deputy Minister is here instead of the Minister.

Osahen Afenyo-Markin: Mr Speaker, I agree with you. I say so because, per the records, any time we had granted this Deputy Minister the privilege, we know that same was abused by him. Yes, he has been abusing privileges. He used the Despatch Box the last time to speak on matters that were not contained in his Statement, and we cautioned him.

So, Mr Speaker, that privilege that he earned was abused by him. So, when we see him here, we would hesitate in granting him that privilege because the Despatch Box is not to be used for certain things, and he should know this.

Mr First Deputy Speaker: I take it that there is no opposition to the item numbered 36 being taken. I will call on the Minister for Finance to take the Motion.

Mr Dafeamekpor: Mr Speaker, the Hon Minister for Finance is unavoidably absent, and so on that basis, may I pray that his able Deputy do this on his behalf.

Osahen Afenyo-Markin: Mr Speaker, this is a House of records. It is not enough for the Majority Chief Whip to announce that the Minister for Finance is unavoidably absent. If there were compelling reasons for his inability to be here, for instance, if there is any emergency Cabinet meeting or whatever, it is the responsibility of the Majority Chief Whip to communicate same to the Leadership prior to the Business being taken, especially when he knows that around him are a handful of his Colleagues. He does not have the numbers to do Government Business, so in a situation like this, he has to jaw-jaw. In an empty Chamber—Where is his 189, including his Ministers of State? They do not even make themselves available to do their own Government Business.

So, he must discuss it with us for us to have some sort of agreement and bring proof of why he is unable to attend upon

Parliament. He should not just get up and say, “he is unavoidably absent.” We are tired of those excuses. The Minister of Finance must take Parliament seriously. He was once upon a time a Minority Leader, so that should be communicated to him.

Mr Dafeamekpor: Mr Speaker, the Minority Leader just participated in an International Monetary Fund (IMF) meeting with Parliament, which you, Mr Speaker, presided. The Minority Leader knows that from here, they are going to engage the Ministry of Finance, so the absence of the Minister is well-grounded.

Mr Speaker, in any case, the Constitution defines a Deputy Minister as a Minister of State, properly appointed under Article 78 or Article 256. So, the Deputies are capable of performing the functions of the substantive; that is what our Constitution says.

Mr Speaker, just so we are all guided.

Osahen Afenyo-Markin: Mr Speaker, with respect, so is the Majority Chief Whip making an application as of right? If he is talking about rights enshrined in the 1992 Constitution, he should say so. He should quote the Constitution, and when we finish, let us look at Article 106 and Article 102 all through, whether they have the numbers to discharge the Business he wants to discharge.

Mr First Deputy Speaker: Hon Members, with all due respect, I think this House has on several occasions

insisted that if the Minister is not there, the Deputy must come and transact the Business. With the circumstances explained by the Majority Chief Whip resulting in the absence of the Minister, I think, it is justifiable to allow the Deputy Minister to move the Motion instead of the Minister.

So, I am inclined to allow the Deputy Minister to move the Motion number 36.

Osahen Afenyo-Markin: As the Speaker pleases.

2:07 p.m.

Mr Ampem: Mr Speaker, I thank you for your wise rule.

BILL — SECOND READING

Value for Money Office Bill, 2026

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That the Value for Money Office Bill, 2026 be now read a Second time.

Vice Chairperson of the Committee (Mr Richard Acheampong): Mr Speaker, I beg to support the Motion. Thank you very much for the opportunity to present your Committee's Report.

Introduction

The Value for Money Office Bill was presented to Parliament by Hon Minister for Finance, Mr Cassiel Ato Baah

Forson, in accordance with Article 106(1) of the 1992 Constitution and Order 163 of the Standing Orders of the House and read the first time on Tuesday, 24th February, 2026.

Subsequently, the Bill was referred to the Finance Committee for consideration and report in accordance with Article 106(4) of the 1992 Constitution and Orders 165 and 226 of the Standing Orders of Parliament.

Deliberations

The Committee met with the Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem to consider the Bill. Officials of the Ministry and Office of the Attorney-General also appeared to assist in the deliberations.

The Committee is grateful to the Hon Minister and Officials for attending upon the Committee and assisting in the deliberations.

Reference Documents

The Finance Committee referred to the following documents during the deliberations:

- i. The Constitution of the Republic of Ghana, 1992;
- ii. The Standing Orders of the Parliament of Ghana, 2024;
- iii. The Public Financial Management Act, 2016 (Act 921);

- iv. The Presidential (Transition) Act, 2012 (Act 845);
- v. The Public Procurement Act, 2003 (Act 663);
- vi. The Audit Service Act, 2000 (Act 584); and
- vii. The Internal Audit Agency Act, 2003 (Act 658).

Background

Ghana's public sector has long suffered from weak expenditure control, process-driven rather than outcome-oriented audits and poor accountability for cost efficiency. The Public Procurement Act, 2003 (Act 663), the Audit Service Act, 2000 (Act 584) and the oversight powers of the Auditor-General under Article 187 of the Constitution focus primarily on procedural compliance rather than on whether public funds achieve value for money.

The demand for strengthened value for money mechanisms has become increasingly pronounced in response to ongoing concerns about inefficiencies in public expenditure, project cost overruns, delays in implementation and weak monitoring systems. While Ghana's accountability framework provides for financial and compliance audits, there remains a need for a specialised institutional mechanism dedicated to performance evaluation and value for money assessments. Hence, the proposal to establish a Value for Money Office.

The proposed Office is intended to fill this gap by undertaking systematic evaluation of government programmes and projects to determine whether public funds are being utilised economically, efficiently and effectively.

The establishment of Value for Money Office further aligns with international best practices in public financial management and reflects the State's commitment to strengthening fiscal discipline and improving service delivery outcomes. Countries such as the United Kingdom, Canada, Singapore, Slovakia and the United States of America have established statutory frameworks to ensure optimal use of public funds.

Purpose of the Bill

The object of the Bill is to establish the Value for Money Office to regulate, monitor, coordinate, promote and develop value-for-money assessments to enhance efficiency, transparency and accountability in the management of public expenditure and procurement.

Summary of Contents of the Bill

The Bill contains sixty-seven clauses. Clause 1 to 3 provide for the establishment of the Value for Money Office, as well as its objects and core functions.

Matters relating to the governance of the Office are addressed in clause 4 to 13. These provisions deal with the establishment of the governing body, its

functions, meetings, committees and the issuance of policy directives.

Clause 14 to 21 make provision for administrative matters, including the appointment of the Director-General and Deputy Director-General, as well as other officers and staff of the Office.

Financial provisions relating to the Office are set out in clause 22 to 26. These clauses address the funds of the Office, sources of financing, budgeting, accounts and audit.

Clause 27 provides for the establishment of a digital management platform for the management and tracking of value-for-money assessments, certificates and reports.

Clause 28 to 39 establish the Value for Money Unit and set out the scope of value-for-money assessments, the powers of the Office in conducting such assessments, the procedures for undertaking them and other related matters.

Clauses 40 and 41 provide for institutional coordination to ensure collaboration and cooperation among relevant public institutions.

Clauses 42 and 43 address training and stakeholder engagement to promote awareness and capacity building.

Clause 44 to 48 deal with the complaint mechanism in respect of value for money assessments and related decisions.

Clause 49 to 67 provide for the establishment of a review mechanism, offences and penalties and other miscellaneous and transitional matters.

Observations

The Committee made the following observations during the deliberations:

Maintenance of Value for Money Assessment findings

The Committee observed that the systematic maintenance of value-for-money (VfM) assessment findings is fundamental to ensuring transparency, accountability and institutional continuity. Proper documentation of findings will create a reliable database that can guide future project planning, procurement decisions and policy formulation.

It will also serve as an evidentiary basis for post-implementation audits and parliamentary oversight. Without a structured archival and retrieval system, valuable institutional knowledge may be lost, leading to repetitive inefficiencies and inconsistent benchmarking.

The Committee therefore recommends the development of comprehensive record management guidelines, including standards for documentation, classification, storage (both physical and digital), retention timelines and controlled public access, subject to confidentiality and national security considerations.

Role of the Office in providing technical advice and training

The Committee recognised that the preventive function of the Office, through technical advisory services and training, is as important as its oversight role. By providing expert guidance at the conceptual and design stages of projects, the Office can reduce the incidence of inflated budgets, poorly structured contracts and inefficient expenditure.

The Committee further observed that structured and continuous training programmes for Ministries, Departments and Agencies (MDAs), as well as Metropolitan, Municipal and District Assemblies (MMDAs), will promote uniform understanding of value-for-money principles. The Committee recommends the development of accredited training modules, practical guidelines, sector-specific manuals, and periodic refresher courses to ensure sustained capacity building across the public sector.

Funds of the Office

The Committee noted that the operational effectiveness of the Office will depend significantly on the adequacy, predictability and sustainability of its funding sources. Where the Office is financed through parliamentary appropriations, loans, grants, donations and other lawful sources, safeguards must be instituted to protect its operational independence. However, the Committee took the view that the Office should be funded mainly through budgetary allocation and not be

permitted to contract loans. A proposed amendment has been made in that regard.

The Committee emphasises that financial autonomy should not compromise accountability. Accordingly, the Office must be subject to strict financial reporting standards and periodic audits. The Committee further recommends that funding arrangements should be structured in a manner that prevents undue influence from any stakeholder whose projects may be subject to assessment.

Digital Management Platform

The Committee observed the provision for the establishment of a digital management platform to facilitate the conduct and monitoring of value for money assessments. A centralised digital system will enhance data accuracy, ensure real-time monitoring of projects and support analytical reporting and benchmarking. The Committee, however, cautions against duplication of existing public financial management systems. It therefore recommends that the digital platform be interoperable with relevant national systems and databases to promote seamless information sharing. The Committee also stresses the importance of cybersecurity safeguards, data protection compliance and regular system upgrades.

Power to Conduct Value for Money Assessment

The Committee noted that granting statutory authority to the Office to conduct value for money assessments

strengthens oversight over public expenditure and promotes fiscal discipline. This power is essential to detect inefficiencies, prevent cost overruns and safeguard public funds. However, the Committee underscores the need for clearly defined procedural safeguards, including notice requirements, scope of assessment, timelines and reporting obligations. The Committee further recommends clarity in the relationship between the Office and other oversight institutions to prevent jurisdictional overlap and institutional conflict.

Regulation of Updates on Cost Benchmarks

The Committee observed that cost benchmarks serve as critical reference points in assessing whether proposed or executed projects represent value for money. Given market volatility, inflation and sector-specific price fluctuations, periodic review and update of these benchmarks is necessary. In this regard, the Committee recommends that updates to cost benchmarks be guided by transparent methodologies based on empirical data and stakeholder consultation. Additionally, revisions should be formally published to ensure predictability and fairness in procurement processes.

Coordination with Relevant Institutions

The Committee recognised that effective implementation of value for money assessments requires coordination with key institutions in the public financial management

framework, including the Public Procurement Authority, the Auditor-General of Ghana and the Ministry of Finance. The structured coordination mechanisms will minimise duplication of mandates, ensure information sharing and promote a harmonised oversight architecture. The Committee therefore recommends formal collaboration frameworks, including memoranda of understanding and periodic inter-agency review meetings.

Joint Coordinating Committee

The Committee notes that the establishment of a Joint Coordinating Committee provides an institutional mechanism for inter-agency dialogue and strategic alignment. Such a body will facilitate policy harmonisation, technical collaboration and timely resolution of operational challenges. Accordingly, the Committee recommends that the composition, mandate, quorum requirements, reporting structure and frequency of meetings be clearly defined to avoid ambiguity. The effectiveness of the Committee will depend on active participation and clearly measurable outcomes.

Training and stakeholder engagement

The Committee observed that broad stakeholder engagement is critical to fostering acceptance and compliance with value for money standards. Engagement with MDAs, MMDAs, contractors, professional bodies and civil society organisations will promote awareness and shared responsibility. To this end, the Committee recommends

periodic stakeholder forums, publication of simplified guidance materials and dissemination of annual performance reports. Such transparency will enhance public trust and reinforce the credibility of the Office.

Dispute Resolution Mechanism

The Committee recognised that disputes may arise from value for money assessments, particularly where findings affect project approvals, funding, or reputational interests. A clearly defined dispute resolution mechanism is therefore necessary to ensure fairness and administrative justice for the effective application of the mechanism. It must be transparent, time-bound, and consistent with principles of natural justice. Provision should be made for internal review procedures and where appropriate, recourse to independent adjudicatory bodies. The Committee further emphasises that dispute resolution processes should not unduly delay critical public projects.

Proposed Amendments

The Committee has proposed the attached arrangements to strengthen the provisions of the Bill.

Conclusion and Recommendation

The Committee, having carefully scrutinised the provisions relating to the establishment, powers and functions of the proposed Value for Money Office, observed that the Bill provides a structured framework to strengthen fiscal discipline, promote efficiency in public

expenditure and enhance transparency in the utilisation of public resources. The Committee is of the view that the maintenance of assessment findings, the establishment of a digital management platform, the regulation of cost benchmarks and the provision for inter-agency coordination would position the Office as a central pillar within the public financial management architecture.

The Committee finds that the passage of the Bill would significantly contribute to safeguarding public funds, preventing waste and ensuring that public projects deliver optimal value to the people.

In this regard, the Committee recommends to the House to adopt this report and pass the Value for Money Office Bill, 2026 in accordance with Article 106 of the Constitution.

Question proposed.

Mr Isaac Boamah-Nyarko (NPP — Effia): Thank you very much, Mr Speaker, for the opportunity to comment on the Report of the Finance Committee on the Value for Money Office Bill 2026. Mr Speaker, I must state on record that, yes, as a member of the Finance Committee, I participated in the Report of the Bill that is before us. But this Report before us has been critically opposed because of the nature in which the Bill is presented. This Bill is only a duplication of the functions that the Public Procurement Authority was established to perform.

Mr Speaker, we are talking about the Value for Money Office. The Value for

Money Office is supposed to be an office that is going to check procurement or contracts that are supposed to be entered into by the Ministries, Departments and Agencies. And for those procurements that are supposed to work, we need to establish the Value for Money thereof. Mr Speaker, the issues that are being presented before us in the Value for Money Office is significantly a Report that the Finance Committee, having reviewed, has made significant amendments or proposals to amend portions of it. You can see that attached in the appendix of proposed amendments as seen in pages 9 and 10.

So, this Value for Money Office Bill, 2026, is being looked at holistically by this Committee, where we serve as Members, to make sure that at the end of the day, we enrich what was presented before us as a Committee, which we have made these significant proposals to amend the Bill that was presented before us as a Committee.

Mr Speaker, I am speaking on this Value for Money Office Bill, 2026, taking into consideration the fact that, yes, together we have agreed to bring this Bill, subject to the proposed amendments that we have seen. We are saying that this Report, Mr Speaker, should be looked at critically by this House and make sure that it is amended to reflect the position that the Minority had indicated in the Committee's Report. This is what we see reflected again, as I said, in the Report as seen in pages 9 and 10.

Mr Speaker, it is the respectful view of the Minority that we are going to support

this Value for Money Office Bill, 2026, subject to all the amendments that have been proposed by the Committee. Mr Speaker, I read the conclusion of the Report which says,

“In this regard, the Committee recommends to the House to adopt this report and pass the Value for Money Office Bill, 2026 in accordance with Article 106 of the Constitution”

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Members, by practice, there is no way by which a Bill can be taken through the Consideration Stage without considering the proposed amendments by the Committee. That one is mandatory. You have to take on board the proposed amendments coming from the Committee.

Mr Dominic Bingab Aduna Nitiwul (NPP — Bimbilla): Mr Speaker, thank you very much. I rise to speak on the Report of the Committee. I think that, as Parliament, sometimes we will have to ask the difficult questions when some of these proposals are coming from Government.

Sincerely, in practical terms — The Minister and the Deputy Minister should have been here, but it looks like only the Deputy is here. In practical terms, what is the sole reason for bringing this Bill? The Minister knows that when you are awarding a contract and it is public funds, you would have to do a value for money audit when you are giving it to an individual, what we call sole sourcing.

When you identify an individual and you decide to give that contract to an individual because of his expertise or because of technical reasons, the people of Ghana demand, through a law, that you must do a value for money audit.

2:18 p.m.

This is so that the public is aware that the contract is not inflated and that they did not just call the person to give him the contract, and that, that is the exact price because it was not subject to competition. Mr Speaker, when they advertise a project and people come and compete, the Entity Tender Committee is expected to look at it and award to the lowest bidder. There is no value for money in it.

That is why I am asking that if we set up this office, what is it expected to do? Because they go to the Public Procurement Authority (PPA) to look at it, they will do the assessments and then give the permission to go ahead. When they advertise, people compete and the competition is supposed to drive prices down. The Entity Tender Committee will look at it and when it passes a certain threshold, they send it to the Central Tender Review Committee (CTRC), which the Minister for Finance and his people are part of, to also look at it and give concurrent approval.

As we see today, what exactly is this office supposed to do? Mr Speaker, if we go to paragraph 4.2, and we read the entire background, it tells us why they think there is a need for it. But we are just setting up another bureaucratic

organisation. Why do we not strengthen what we already have? We have all the laws, so why do we not strengthen it? The Public Procurement Amendment Act, 2003 (Act 663) is there, the concurrent approval is there and the approval from the Entity Tender Committee is there. If they do not want to do a value for money audit, they should not do single source, but scrap it.

They should say that every contract must go through competitive bidding. In competitive bidding, we all know how it is done. One does not see what I bid, and the other does not know what his opponent has come to bid. The contractor will look at it and believe that he can use GH¢1 million to do the job. Another person would think that they can use GH¢600,000 to do the job. The Entity Tender Committee will look at it, assess and give it to the best person. Most often, the laws insist that they should give it to the lowest bidder. That is why I am asking, what exactly are we setting this bureaucratic office for again? Is it because of sole sourcing or what is it for?

Secondly, Mr Speaker, Internal Audit Unit has a function. Is this office going to take part of the function of the Internal Audit Unit? —*[Interruption]*—What has middle-belt got to do with this? Mr Speaker, the functions of the Internal Audit Unit are being taken by this amorphous body that they are setting up. There is a reason why the internal auditor is within the organisation. When he does his work properly, then the external auditor will come and do the final audit.

We have all the laws, we have all the safeguards, but we are simply not practising them. We are simply not strengthening them. We are going to set up another bureaucratic organisation, and I can tell the House that in about two or three-years' time, this will be where there will be corruption. This will be the biggest body for corruption, because that is where contractors will go and sort people out. Everybody in Ghana will want to go and work under this office, because they would want to sort them out. That is what they want to do, because that will determine how much a person's contract will be.

There is a good reason why most of the audits were done by outside entities. They know that, that is a good reason why most of the audits were not done by Ghanaians. They were done by outside entities, so that we cannot influence them. They want to go and put a group of people, and every day—*[Interruption]*—Mr Speaker, I am saying that there is a good reason why most audits around the world are done by outside entities and by recognised institutions. Klynveld, Peat, Marwick, and Goerdeler (KPMG) and several others do this—

Mr Dafeamekpor — *rose* —

Mr First Deputy Speaker: Hon Majority Chief Whip, you can take note. When you have the floor, you counter it.

Mr Dafeamekpor: Mr Speaker—*[Interruption]*.

Osahen Afenyo-Markin: No, when it is your turn. He is a Senior Member.

Mr Dafeamekpor: Exactly the reason I am on my feet. He is a former Leader of the House. He can make his point without suggesting that local audit firms are not given jobs because they can be compromised and they are not competent. It cannot be. That is all he said. He said that is why jobs are given to foreign audit firms.

Osahen Afenyo-Markin: He never used foreign. He said “external”.

Mr Dafeamekpor: What does external mean? So, Mr Speaker, we must not allow that to stay in the record. He must withdraw. He can make his point.

Mr First Deputy Speaker: Hon Nitiwul, you have the floor. You may conclude.

Mr Nitiwul: I repeat; it is for good reasons that value for money audit is given to an external group of people. *[Interruption]* But he should have asked me to define external. It is for good reasons that it is like that. Mr Speaker, if we are not careful and we set up a body that everybody knows who the members are, we risk a very big problem in our hands tomorrow. We want to fight corruption, but I can tell the House that corruption will fight us if we are not careful.

I say that we should strengthen what we have because we have all the safeguards. If we want to award a contract and make sure that, that contract goes through the best competitive price, all the safeguards in our laws are there already. My fear, is that if we set up this

body and we are not careful, corruption will begin to fight us from this body. I do not know who the members will be, I do not know the capacity of the members, and I do not know how we intend to look at it, but I can tell that corruption may end up fighting us.

We have seen some of it from PPA before, and we will continue to see some of these things. All I can say, Mr Speaker, is that I support the Minority's position that the form and manner in which this Bill has come, we cannot support it. Except we agree on certain amendments that will take care of the very concerns that I am making today. Otherwise, I would advise the Minister for Finance to withdraw this Bill and take it out completely and strengthen what we have already. Because it is only on, single source that we do value for money audits. They are going to make a Bill just because of that when they can strengthen the value for money agencies to do proper work for them. *[Interruption]* But that is what I am telling them in practical terms.

Mr Speaker, I started by saying that in practical terms, the time where they do value for money audit, in most cases, is when they decide to give a contract on single sourcing.

Mr First Deputy Speaker: Hon Nitiwul, when you are on the Floor speaking and you try to respond to what they have not placed on record, if you go back to listen or to read the *Hansard*, you will feel sorry for yourself. So, while you are on your feet

speaking, address the Chair. Other than that, if you go back and look at your submissions, you will say that, "ah! what was the basis of saying this?" Because whatever the person said from the other Side is not captured by the *Hansard*. But your response is only captured by the *Hansard*.

Mr Nitiwul: Thank you, Mr Speaker. In fact, my Leader kept on prompting me on the same line, that I should focus and just look at you. But the point I am making is that the way this Bill has been brought, it may be well-intentioned, but we should withdraw it and do the right thing. They should go and make sure that we strengthen the current value for money audit and make sure that it works. They should simply not give contracts on single sourcing, and there will not be a need for this.

I know that the President says that they do not want to do single sourcing any longer. So, they should not give. I know they are doing it. In fact, the majority of the contracts they are giving looks like it was given on single sourcing anyway. But that is what they said publicly. I am saying that we should withdraw single sourcing from our contracts.

2:28 p.m.

Let every contract be a competitive bidding. If every contract is a competitive bidding, the audit will be taken care of by the process of the bidding. Competition will give us the best price. The law is very simple: you do not know what I have, and I do not

know what you have. When the entity opens the tender on that day, they give it to the lowest bidder, as long as all of them are qualified.

So, we will go and see that there is a contract for GHC10 million, and someone is bidding GHC6 million, some are bidding GHC9 million, and some are bidding GHC3 million. So, two things they need to do, Mr Minister, instead of this, are to withdraw all sole source contracts and restricted tender contracts.

He knows what I mean by restricted tender contracts, which is where three or four companies are pre-selected, and those companies alone will bid. So, withdraw those two things, and they will not need this Bill. I say, Mr Speaker, we do not need this Bill; we just need to make sure that we do not give contracts on sole sourcing and on restricted tender. If they can do that, we do not need this. Otherwise, they are going to set up an amorphous body that will allow corruption to come and eat us one day.

I thank you, Mr Speaker.

Mr Eric Afful (NDC — Amenfi West): Thank you, Mr Speaker, for the opportunity to add my voice to the Report of the Finance Committee. Mr Speaker, Hon Nitiwul was looking for the purpose of this all-important Bill. Let me read it to him:

“The object of the Bill is to establish the value for money office to regulate, monitor, coordinate, promote and develop value for money assessments to enhance efficiency, transparency, and

accountability in the management of public expenditure and procurement.”

That is the essence of this all-important Bill. Mr Speaker, I have been in this House from the Sixth Parliament, the Seventh Parliament, the Eighth Parliament, and the Ninth Parliament. I am a senior man in the House. Mr Speaker, project loans have been rejected in this House because of a lack of money audit documents. We have rejected project loans because they are not accompanied by value-for-money audit assessments. Now, we have a Bill in place, which, when put into law, will help us to avoid all these things. They want us not to allow this to go through? Mr Speaker, I do not think we are doing ourselves any good as a country. Let us go ahead to make sure that this Report is adopted, the processes for the enactment of this law are done, so that we will be free from all these things.

Osahen Afenyo-Markin — rose —

Mr First Deputy Speaker: But we agreed on one comment from each Side, then Leadership. This may be probably before you walked in.

Osahen Afenyo-Markin: No, Mr Speaker, that was on the previous Bill. Mr Speaker, Hon Samuel A. Jinapor would want to speak, then we can come to—

Mr First Deputy Speaker: So, are you making a new appeal?

Osahen Afenyo-Markin: Mr Speaker, this is an important Bill—

Mr First Deputy Speaker: Because at Conclave, there was an indication that two financial Bills would be taken for Second Reading, and there was a bit of an agreement on—

Yes, Hon Samuel Abu Jinapor.

Mr Samuel A. Jinapor (NPP — Damongo): Thank you very much, Mr Speaker, for the opportunity to contribute to the debate on the Report on Value for Money Office Bill, 2026, before this House. I am truly grateful for the opportunity. Mr Speaker, this is indeed a very important matter before this House, and as you will know, more than anyone of us, the issue of sanitising our procurement space is an age-old one. Mr Speaker, you recall that under President Kufuor, the Public Procurement Bill, 2003 was passed into an Act, which became the first bedrock procurement framework for ensuring value for money when it comes to public procurement.

Mr Speaker, you also recall that under President Kufuor, an Office of Accountability was even established at the presidency, and there have been a series of efforts over and over again to attempt to sanitise the public procurement regime of our country. Under the law, there are only two occasions when value for money is required: sole sourcing and restricted tender. Mr Speaker, what is sole sourcing? Sole sourcing is, we all know, where one company is invited to provide procurement, and restricted tender is when two or three companies are called upon to tender in a restricted manner.

Mr Speaker, the rationale behind sole sourcing and restricted tender, from the outset, had been that if there was an emergency, for example, and the government or the public sector could not go through the elaborate process of advertising due to time constraints, and so on, then you would go for sole sourcing. Again, if you even had a certain limited time or a bit more time, then you could do a restricted tender. But, Mr Speaker, what has happened over the years? This process has been abused. It has been abused because we have had situations where sole sourcing is adhered to when it does not fall within the very restricted, limited circumstances within which sole sourcing should be restricted to, where there is no emergency and where there is enough time. Yet, public officers go along the line of sole sourcing for the reasons we all know, which I should not say here.

Mr Speaker, for restricted tender, there have been situations—and let us call a spade a spade; let us be blunt on this matter. There have been situations where, in the public sector of our country, we say restricted tender, and the restricted tender is contrived where whichever of the two or three companies wins the bid, the beneficiary becomes the same person with a—Mr Speaker, this is a fact; let us agree that these are the problems with our public procurement in our country. So, let us not interrogate the point that the Hon Dominic Nitiwul has made from a partisan lens. Let us interrogate it objectively and interrogate it as a House. Let us have a bipartisan interrogation of the point he has made, which is that if this Value for Money

Office Bill, 2026, is intended to ensure that the state or the Republic and its citizens get true value when we go through sole or restricted tender, we then will have this new arrangement for value for money.

Mr Speaker, should we have sole sourcing and restricted tender in the first place? If we truly want to have value for money, should we not, as a country— And I see that my good Friend, the Deputy Minister for Finance, is listening with rapt attention. Mr Speaker, should we not have a situation where every tender or procurement is an open, public, transparent, competitive tender? Let us find a way of answering that question. Mr Speaker, the danger and risk we may have with this kind of arrangement is that,

2:38 p.m.

Mr Speaker, we are going to build up another layer of bureaucracy, which is why I made the effort to take us through the historical antecedent of attempts by government after government in sanitising the public procurement of our country and ensuring value for money. Let us all accept it, and this is not an NPP matter or an NDC matter. One of the biggest problems our country has is procurement, and I am fully convinced about it. Having had the privilege of being in government for eight years, one of the biggest problems our country has is procurement. We procure what we do not need because it probably stands to benefit the public official or officials who are engaged in the procurement. We have excess procurement when we do

not have to. When we have to procure particular items which will serve the public good, we will not because that may not benefit one public official or the other. Sole sourcing is abused, and it is a fact. It was abused in the first NDC government, it was abused in the NPP government. It is being abused in this Government; restricted tender is being abused and Mr Speaker, in some cases it is not even abused by politicians. That has always been the mistake we make. It is not abused by ministers nor deputy ministers. Sometimes it is abused by public officers of all kinds.

So, Mr Speaker, if the Hon Minister truly wants to sanitise the public procurement space of our country, another bureaucracy of passing of an Act, I can assure you, will not be the *sine qua non*. If as a country we have come to the conclusion that sole sourcing and restrictive tendering is not helping us and is being abused, let us abolish it, and for every procurement, let us have an open, transparent, public, competitive tender. That may be the way to go, and that should be the matter which we should discuss here.

Thank you very much, Mr Speaker.

Mr Richard Acheampong — *rose* —

Mr First Deputy Speaker: Hon Acheampong, you presented the Report of the Committee.

Mr Richard Acheampong: Yes, Mr Speaker, I just want to provide some information. I presented the Report, and there is nowhere in the Report that sole

source is stated. They are trying to import foreign issues into the Report. If they want to talk about sole sourcing, they should go and generate another report. Sole sourcing is not mentioned in this Report. They should not import any foreign material into the Report. We want to cure a mischief. The PPA system is not working, and we want to address the situation.

Mr First Deputy Speaker: Hon Richard Acheampong, the *Hansard* has captured the entire Report. So, it is the same *Hansard* that will capture their argument.

Mr Richard Acheampong: So, we should not allow them to import foreign information into the Report.

Mr First Deputy Speaker: Yes, Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, thank you for the opportunity.

Mr Speaker, our Side participated in deliberations of the Committee. For the records, it is our case that when the draft report was ready, our Side did not get the opportunity to peruse the draft, specifically, the Ranking Member and Deputy Ranking Member of the Finance Committee did not have the opportunity to peruse the draft to state the position of the Minority.

Mr Speaker, we do not want to set a certain precedent. The Chairperson of the Committee, who is in Leadership, knows the protocols that the Committee is not a one-Sided committee. It is made

up of two Sides of the House. When the Clerk to the Committee generates the reports, same is perused by both parties; the Chairperson and the Ranking Member. Then when they agree and the respective Leaders put in the views of their Caucuses, the final report is generated. That is the practice.

Mr Speaker, it is the case of the Minority that the Report of the Committee as contained in paragraph 9 on page 7, be amended to reflect Majority decision, not a consensus. It is a Report by Majority decision.

Mr Speaker, that said, we the Minority would want to state why we are against this Bill. If you look at paragraph 3 of the memorandum of the Bill—

Mr Dafeamekpor — *rose* —

Mr First Deputy Speaker: Hon Minority Leader, hold your peace. Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, with all due respect, the procedure just enunciated by the Minority Leader at Committee levels is inaccurate. At Committee level, the position of the caucus is stated before a report is generated. You do not state your position after a Report is generated and approved. If he is doing this as an afterthought, he should say this, that upon hindsight, they are deciding to go against the terms of the Report. They should not come and say that it is the leaders who generate the views of the caucuses. That is not the procedure. The procedure is that every member of the Committee will states

their position. It is then conveyed and communicated in the Report. If a caucus in a Committee decides that they will have a Minority position, it is stated and that is taken to constitute the Report. So, let the records reflect that.

Mr First Deputy Speaker: Before the Minority Leader comes in, Majority Chief Whip, you are right in the sense that per our rules, there is nothing like “caucus decision” in our Committee meetings. We have Minority and Majority. The members present at the Committee meeting make a decision on the report, and it is the outcome that is communicated to Plenary. It is possible that somebody belongs to a ruling government, but at the Committee level will be in Minority. It is possible you belong to the opposition, but at the Committee level, you will be in the Majority, depending upon the way the decision is taken.

So, to say that the Report of the Committee must reflect the caucus position, I beg to differ.

Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, the Minority on the Committee expressed their opposition to the Bill and its Report, and indicated clearly that the decision be by Majority decision because the Minority were opposed to it. That is why when the final draft of the Report was ready, the Ranking Member indicated to me that he did not get the opportunity to peruse it to ensure the same reflected in the final Report. I am here as the Leader of a group of

Members on the Committee who are in Minority, and it is the instructions that I am carrying out in this Chamber.

Mr First Deputy Speaker: No, your position that you have stated which I have a problem with is the “caucus position”—

2:48 p.m.

Osahen Afenyo-Markin: Mr Speaker, I have brought clarity so let me make my argument, Mr Presiding Officer. Let me make my argument.

Mr Speaker, the opposition of the Minority to this Bill and this Report is not a lame opposition. It is well founded on law and in fact, Mr Speaker. Firstly, if you read paragraph 3 of the memorandum accompanying the Bill, this is what it says and with your leave, I quote:

“Globally, countries such as the United Kingdom, Canada, Singapore, Slovakia and the United States have established statutory frameworks such as the National Audit Office of the United Kingdom, the Value for Money Audit Manual of Canada and the United States Government Accountability Office to ensure the optimal use of public funds. The adoption by Ghana of a similar framework will align with global best practices and strengthen the public financial management architecture of the country.”

Mr Speaker, if this is indeed the intention of Government, then it is

important that this Side of the House make certain disclosures to Government.

One, the institutions that they have mentioned as their reference point, if we look at their governance architecture, they are not politically controlled. So, the kind of alignment they are talking about does not find expression in the very Bill they are bringing. So, they should not confuse us by telling us that they want to comply with best practices globally, but in adopting it, they go on a path that would rather expose this country.

Hon Nitiwul made an elaborate submission on why this Bill would rather promote corruption. Mr Speaker, and I will take you through the clauses. First of all, if you go to clause 4 of the Bill, it deals with appointments, governing body of the Office. The governing body of the Office is a board consisting of chairperson nominated by Minister. By the Minister? The very thing you want to cure, the Minister would have his alter ego. Who does not know that before a Minister makes an appointment, he would first look at loyalty to him, not only competence but loyalty. *Ab initio*, are they creating an independent body?

That is why we are telling them that we have the Public Financial Management Act, 2016, Public Procurement Authority Act, 2003 itself and then the internal organisations that we have in public institutions allow for some level of value for audit. And where it is required that certain level of procurement is to be undertaken, external value for money institutions that are independent are relied upon. Why do

we not look at this and strengthen where we think there are loopholes? They are creating another bureaucracy, which is government controlled, Mr Speaker.

The next person is a representative of the Attorney-General of the same Government; A lawyer from the legal directorate of the Ministry nominated by the Minister; One expert in gender equity nominated by the Minister. Mr Speaker, then you have the Ministry of Finance, a director to be nominated again by the Minister. The net effect is that the same problem that the Government wants to cure would rather become complicated and there will be no cure. The outcome will be otiose. It will be otiose because, they are placing something on nothing. They are going nowhere. How can they say that they need an enactment with a whole bureaucracy, with another budget, and then the Minister is controlling? Who said that the Minister cannot call the Chairperson and tell the Chairperson that, look, this thing is coming, so deal with it? Mr Speaker, it is probable, not possible, because all those in charge are controlled by the Minister.

Mr Speaker, when we talk as a Minority, we are not just shouting or opposing. We are telling our Colleagues that they should watch the space. We do not need this law. The Public Financial Management Act, 2016 provides for certain stringent measures. It was their own law they brought in 2016. I was a young Member of Parliament on the Finance Committee, and we passed that law for them. It is there. Why would they now come and create another bureaucracy for what the ordinary man

on the street will call *chop-chop*? Why would you create another bureaucracy that the ordinary man on the street will call *yentsɛ ndi*?

Mr Speaker, as political leaders, we must be careful about the impression we create out there. I am all for this reset agenda, to the extent that, oh! yes, to the extent that the reset will help create a better Ghana. Mr Speaker, we do not have a perfect system, but so far, with respect, I beg to submit that they are a walking contradiction. So far, I must submit that they are a walking contradiction. They have not lived to the promises that they made. Otherwise, why would we have a Deputy Chief of Staff who has a company then Gold Board would award GH¢11 million sole source contract to—[*Uproar*].

Hon Majority Chief Whip — *rose* —

Mr First Deputy Speaker: Hon Majority Chief Whip?

Osahen Afenyo-Markin: That is a typical example of their walking contradiction—

Mr First Deputy Speaker: Hon Majority Chief Whip?

Osahen Afenyo-Markin: It is a matter of fact. I can furnish them with the documents. It has not been denied. It is not coming from me.

Mr First Deputy Speaker: Hon Majority Chief Whip, I will come to him after you so note your points.

Osahen Afenyo-Markin: It is not coming from me. I am giving you an example that these are matters in the public domain. GOLDBOD says it published the contract on its own website. It is not Afenyo-Markin where they would take me to Committee of Privileges and Immunities. This is not me. So, if they are in a hurry to take me to Committee of Privileges and Immunities, this is not me. It is not me. GOLDBOD says that the GH¢11 million contract it awarded on sole source has been published on its own website. That is fact number one, not me. Two, the owner of the company has not come to deny. He wrote publicly and said, “ah! but my party is in power. Should my business not work? Should my company not work?” He himself admitted. So, nobody should carry any impression that Afenyo-Markin says. It is the facts.

The players themselves are saying so. *Jee mi ji mɔ ni mli wie neke sane nɛɛ. Jee Afenyo-Markin, amɛ diɛntɛ ji mɛi ni wieɔ akɛ amɛmiiye shika.* They themselves said so. *Ayeɔ nii.*

Mr Speaker, they said that they did the business to wit, they have awarded the contract to themselves. They say everything was clean on sole source. And I am saying that if the Government is saying that it wants to cure sole source and ensure value for money, we do not need a new law.

We have the PPA Act itself. In the PPA Act, when a document is submitted, PPA is required to do value for money. It is supposed to validate, verify, and do its

own checks. So that in itself is a form of value for money. Government should rather strengthen PPA. After all, Government brought an amendment to this House for the PPA law. We all supported the law. one of the first things the Minister for Finance did which I applauded him, was to do this amendment, which required that there must be a pre-approval of procurement. I have forgotten the name he called it; commitment authorisation.

2:58 p.m.

Mr Speaker, I, on this Floor, praised the Minister for Finance for doing that. It is not every day that we oppose our Friends. On this Floor and the public record will bear me out that I praised the Minister for Finance for introducing that commitment authorisation policy because I was once upon a time a Road Fund Board Chair and I knew the challenges and how I fought hard to save the public purse.

And I felt we needed strong laws and policies. So, once there is a reform, I will support it, because as political leaders, we do not have a positive impression out there, whether one is in the National Democratic Congress (NDC) or the New Patriotic Party (NPP). So, let us take advantage while we are in office, whether in government or in opposition, to do proper reforms.

What we are seeking to do is rather to open the Pandora box. This law, if enacted, will rather be the right channel for corruption. I know the Minister means well by asking us to model this,

but the way it has been structured, it will not — Mr Speaker, I have done some work and these institutions, whose example he wants to follow, do not have government appointees in them. He should check it. The Deputy Minister is here. As we speak, Members of Parliament should just go on the internet and search for the institutions that they are referring to in other jurisdictions. They are not government-controlled. So, if he wants to still use a political system under Articles 70 and 195 — I read the law. He is saying that the appointment of the board will be in accordance with Article 70. I have read it.

Colleagues, I am not just opposing this, but what they are doing is wrong. They also mentioned Article 195 of the Constitution. Why do we not allow the existing laws to operate and strengthen them? They should not open this one up because if they do, there will be corruption. That said, the Minority will not rubber-stamp this Bill. If the Majority will not listen to these strong views and take them on board and rather bring amendment of existing laws and it wants to pursue the path of “chop-chop” as the ordinary man will say, we, the mighty few, the 87, wash our hands. We will not be part of these unholy acts, which would rather expose the State and make the State vulnerable. They should carry their burden alone.

Mr Speaker, I so submit on behalf of the Minority. *[Hear! Hear!]*

Mr First Deputy Speaker: It is now the turn of the Majority. Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I have been on my feet for some time. The Minority Leader has said very dangerous things against the Government that must not be allowed to stay in our records. He has said emphatically, and he spoke Ga, which he refused to translate. The translation goes to this. He says, “They are chopping...” Please, I listened to him in quietude. Yes, I was on my feet to protest the unwholesome things he was saying about the Government. And they are in breach of Order 93(5).

Mr First Deputy Speaker: Well, Majority Chief Whip, if indeed the Minority Leader said things in Ga which, as a matter of fact, has not been translated into English, then I will consequentially direct that, based on Standing Order 63, same should be expunged from the record.

Mr Dafeamekpor: Mr Speaker, the danger of what the Minority Leader does is that because our proceedings are carried instantaneously, they not only have an effect by staying in the *Hansard*; they are carried out live. He has been compelled once, just recently, to withdraw things that he said that were in error, so to say that the Government is bringing this Bill just to do “chop-chop”, which is to just fester corruption, is absolutely untenable. It is in breach of Order 93(5).

Mr Speaker, let me read — Please, can he comport himself? I am not his junior; he cannot intimidate me. I intimidate him in this Chamber. He has to withdraw. No, the Minority Leader cannot walk away when I am taking objections to

comments that he has made. He has to be here to listen. That is the practice.

Mr Speaker, he has said that the Government’s intention in bringing this Bill is to encourage corruption and “chop-chop”. That is in breach of Order 93(5), so it must be expunged. He further said that the Government’s intention is actually to create and share and that portion must also be expunged. I have been trying to get these objectionable comments expunged, but he has completed his contribution, so I leave these matters entirely in your hands, as those comments absolutely breach Order 93(5). They are unwholesome and they are unparliamentary and they must be expunged.

Mr First Deputy Speaker: Yes, Hon Deputy Minister for Finance?

Mr Ampem: Mr Speaker, I want to thank Hon Members for their contribution and to say that when we appeared before your Finance Committee, they raised issues and we responded to them. Members of the Committee made proposals to perfect the Bill; in fact, that is the essence of laying Bills and referring them to Committees to work, submitting same and their Report to the House. On no occasion did anybody object to this Bill. They rather made inputs that we believe will make the Bill better before it is passed into an Act.

But Mr Speaker, they have raised certain concerns and I want to address them. They are trying to create an impression that because we have the

Public Procurement Authority (PPA), we do not need this Value for Money Office. We want everybody to appreciate what PPA does; the PPA focuses on procurement procedures to ensure transparency and fairness. They are not focused on cost efficiency and that is what this Value for Money Office is going to do. It is going to ensure a life cycle costing, technical soundness and post-contract verification.

Mr Speaker, Hon Nitiwul reminded us of the fact that as a country, we have always subjected single-source procurements to value for money and maybe restrictive tendering, but not competitive tendering. That is true. In fact, we had a company called Crown Agents. It is a United Kingdom (UK) based company that was here and that company was the one we always fell back on to conduct value for money for this country. As we speak, Crown Agents has left this country and there is no institution to provide this service.

3:08 p.m.

So, it is timely that we have our own Value for Money Office to conduct value for money for procurements that are done in this country.

Mr Speaker, they have also suggested through their submissions that, it is only sole source or competitive bided contracts that are subject to abuse and corruption in this country. That is not the case. We have seen competitive bidding contracts that have been overpriced and that is clear. We have seen evidence. In fact, we have seen cost build-ups in our

contracts that show purchasing of mobile phones and airtime for contractors. We have seen cost lines that indicates renting hotel accommodation for contractors. All these are in competitive bid contracts.

So, it is not true that it is only sole source or restrictive tendering that have been overpriced. So, this Value for Money Office is going to look at all these. The Office would be equipped with engineers, quantity surveyors and all the technical people that would be able to do this job.

Mr Speaker, the Office would be required to establish benchmark values for all major projects that we have in this country. So, if we take a six-unit classroom block, this Value for Money Office will give a benchmark cost for constructing a six-unit classroom block, to help us have value for our procurements in this country—*[Hear! Hear!]*.

It is never true that the setting-up of this Office is intended for corruption. That is not the case. We are rather putting in measures to fight corruption. In fact, we are those who are advocating that we must minimise sole source and single source contracts in this country. The exception has rather become the norm. That is what we saw under their Administration and that is what we want to change. We are bringing this, as an additional measure to make sure that every contract we award in this country is giving value for the Ghanaian people. So, they should support this.

The Committee has suggested amendments and that is the essence. We are open for this House to perfect the Bill, so that it will be passed into an Act to help all of us as a country.

Thank you very much, Mr Speaker.

Question put and Motion agreed to.

Value for Money Office Bill, 2025 accordingly read a Second time.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we take the Motion numbered 32, that notwithstanding, Order 169(1), we are not proceeding under certificate of urgency—[*Interruption*—We are prioritising. Mr Speaker, I so plead.

Mr First Deputy Speaker: Yes, Minority Leader, the application is to take the Motion numbered 32.

Osahen Afenyo-Markin: Mr Speaker, a listening Government would take a cue from the Opposition. Even when we just advised them that this Bill would open the country up for corruption—[*Interruption*—they were to listen to us—[*Interruption*—No, listen to me, I am not done.

Mr Speaker, they now want to jump to the Ghana Deposit Protection (Amendment) Bill, 2025 and say that they want to apply for a waiver. At the beginning of this Meeting, we told our Colleagues at a joint meeting of Leadership that, this practice of rushing

to pass Bills through certificate of urgency, should be stopped.

Mr Speaker, this is another form of certificate of urgency. If he mounts an application to waive the rules—he just brought a Bill? Why would he not allow the statutory notice of 48 hours to lapse? Then they can make an application for a waiver.

Mr Speaker, on some other important matters. We decided not to pursue the Quorum issue. If they want to insist, then they may have to bring their 189 Members to come and conduct their Business. Because as we speak, even if they add the Majority Leader, who just came back from a Cabinet meeting—they have brought the Majority Leader to join in and lead the charge.

He has attended a Cabinet meeting, he is tired and has to rest, but he has come here. Even if we add the Majority Leader, they would not be up to 40 in number. They should count the number of Members at their Side before they make some of these questionable applications. If they want to make questionable applications, they should ensure they have the numbers. They do not have the numbers. Even majority of the 40 Members present here are not happy. It is because the Chief Whip is writing names and using it to threaten them, that is why they are here.

The weak ones who do not have godfathers are here. But those with godfathers are defying their name writing; they would not come. So, the

Majority Chief Whip would have to consider his application. But we have just seen the Majority Leader. We know he is a man who believes in good faith and acts same at times. We would want to just give him some silver lining. We want to extend an olive branch. He should move his Motion; we would not oppose it. But they should be of good behaviour and that is the advice to them.

Mr Dafeamekpor: Mr Speaker, let the record reflect that I am not writing any names and I am not threatening my Backbenchers with that. The Minority Leader should have his facts right.

Mr Speaker, may we take the Motion numbered 32.

Mr First Deputy Speaker: Hon Members, it is important to draw the attention of the House to Article 106, particularly 13. For a Bill to be taken under certificate of urgency, certain things would have to occur. One, the Constitution requires that a Bill must be gazetted 14 days prior to its introduction. But if a Bill is going to be taken under certificate of urgency, that 14-day gazette requirement is waived based on the constitutional imperative.

Even before the Bill can be taken, a Committee would have to determine that this particular Bill is of urgent nature and it must be taken under a certificate of urgency. However, that is not a situation applicable to this particular rule. So, to say that this Bill is being taken under a certificate of urgency, looking at the

constitutional provisions, as compared to the exigencies of the case, the Bill is not taken under a certificate of urgency.

Yes, Motion numbered 32.

MOTIONS

Suspension of Order 169 (1)

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a Bill has been read a second time, the Bill shall pass through a Consideration Stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the Governance Advisory Council Bill, 2025 may be *taken* today.

Question put and Motion agreed to.

Resolved accordingly.

3:18 p.m.

Mr First Deputy Speaker: Yes, Second Deputy Majority Whip?

Second Deputy Majority Whip (Mr Richard Acheampong): Mr Speaker, we will take the item numbered 33, Ghana Deposit Protection (Amendment) Bill, 2025 at the Consideration Stage.

Mr First Deputy Speaker: Ghana Deposit Protection (Amendment) Bill, 2025 at the Consideration Stage.

BILL — CONSIDERATION STAGE

Ghana Deposit Protection (Amendment) Bill, 2025

Clauses 1 and 2 ordered to stand part of the Bill.

Clause 3 — Section 5 of Act 931 amended.

Mr First Deputy Speaker: Chairperson of the Committee?

Mr Richard Acheampong: Mr Speaker, I beg to move, clause 3, line 4, after “units”, *insert* “and fifty penalty units for each day that the contravention continues”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, I will put a question on the entire clause 3 as amended.

Question put and amendment agreed to.

Clause 3, as amended, ordered to stand part of the Bill.

Clause 4 — Section 6 of Act 931 amended.

Mr First Deputy Speaker: Chairperson of the Committee?

Mr Richard Acheampong: Mr Speaker, I beg to move, paragraph (a), line 2, after “Scheme” *insert* “prior to the grant or otherwise of the request by the Bank of Ghana”

Mr First Deputy Speaker: Hon Members, the proposed amendment is for your consideration. Any further amendment to it?

Question put and amendment agreed to.

Clause 4, as amended, ordered to stand part of the Bill.

Clause 5 to 9 ordered to stand part of the Bill.

Clause 10 — Section 20 of Act 931 amended

Mr First Deputy Speaker: Clause 10, Chairperson of the Committee, you may move amendment iii.

Mr Richard Acheampong: Mr Speaker, I beg to move, subclause (6), line 3, after “members” *insert* “or depositors”

Mr First Deputy Speaker: Hon Members, the proposed amendment is for your consideration. Any further amendments?

Question put and amendment agreed to.

Clause 10, as amended, ordered to stand part of the Bill.

Mr First Deputy Speaker: Clause 11, Chairperson of the Committee?

Mr Richard Acheampong: Mr Speaker, I beg to move, Section 20 (b), subsection (2), paragraph (a), *delete* and *insert* the following: “(a) the resolution will result in a viable and solvent restructured bank or specialised deposit-taking institution that limits the exposure of the Corporation to additional funding in respect of the same entity; and”

Question put and amendment agreed to.

Mr First Deputy Speaker: Chairperson, item v.

Mr Richard Acheampong: Mr Speaker, I beg to move, section 20B, subsection (4), line 3, after “Bank of Ghana”, *delete* “is considering” and *insert* “has made a determination”

Question put and amendment agreed to.

Clause 11, as amended, ordered to stand part of the Bill.

Clause 12 —Section 21 of Act 931 amended

Mr First Deputy Speaker: Chairperson, amendment vi.

Mr Richard Acheampong: Mr Speaker, I beg to move, closing phrase, line 3, after “thousand”,

insert “penalty units” and in line 4, *delete* “offence” and *insert* “contravention”

Question put and amendment agreed to.

Clause 12, as amended, ordered to stand part of the Bill.

Clause 13 to 19 ordered to stand part of the Bill.

Clause 20 — Section 46 of Act 931

3:27 p.m.

Mr Richard Acheampong: Mr Speaker, I beg to move that, subclause (5), *delete* and *insert* the following:

“(5) Funds provided by the Government under subsection (4) shall be treated as a

(a) loan to the Corporation that is repayable over the period on terms agreed on by the parties; or

(b) grant.”

Question put and amendment agreed to.

Clause 20, as amended, ordered to stand part of the Bill.

Clause 21 to 22 ordered to stand part of the Bill.

Clause 23 — Section 53 of Act 931, amended.

Mr Richard Acheampong: Mr Speaker, I beg to move that, definition of “insurance company”, line 2, after “business” *insert* “under the Insurance Act, 2021 (Act 1061)”.

Question put and amendment agreed to.

Mr Richard Acheampong: Mr Speaker, I beg to move that, definition of “pension fund”, *delete* and *insert* the following:

“pension fund” means a private or public investment fund regulated by the National Pensions Regulatory Authority within the pension scheme, which is intended to accumulate during the working life of an individual from contributions and investment income, with the intention of providing income in retirement from the purchase of an annuity or in the form of a programmed withdrawal, with the possible option of an additional tax-free cash lump sum being paid to the individual;”.

Question put and amendment agreed to.

Mr Richard Acheampong: Mr Speaker, I beg to move that definition of “retirement fund”, *delete* and *insert* the following:

“retirement fund” means an informal investment fund properly designated as a retirement fund, that is intended to accumulate during the working life of an individual from contributions and investment income, with the

intention of providing income in retirement from the purchase of an annuity or in the form of a programmed withdrawal.”

Question put and amendment agreed to

Clause 23, as amended, ordered to stand part of the Bill.

Clause 24 ordered to stand part of the Bill.

Long Title ordered to stand part of the Bill.

3:38 p.m.

Mr First Deputy Speaker: Hon Members, this brings us to the end of the Consideration Stage of Ghana Deposit Protection (Amendment) Bill 2025.

Hon Members, before moving on to another item, permit me to acknowledge the presence of students from University of Skills Training and Entrepreneurial Development (USTED), Mampong-Asante, led by Dr Samuel Baah-Duodo, a lecturer. They are from Asante Mampong. They are 63 in number. Hon Members, on your behalf, I welcome our dear students to Parliament and urge them to have a fruitful visit. Kindly resume your seats.

[Students from USTED were acknowledged.]

Mr First Deputy Speaker: Yes, Second Deputy Majority Whip?

Mr Richard Acheampong: Mr Speaker, may we take the Motion numbered 34?

Mr First Deputy Speaker: Yes, Second Deputy Minority Whip. The application is to take the Motion numbered 34.

Mr Shaib: Mr Speaker, we have no objection.

MOTION

Suspension of Standing Order 172(1)

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that when a Bill has passed through the Consideration Stage, the third reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Ghana Deposit Protection (Amendment) Bill, 2025 may be moved today.

Second Deputy Majority Whip (Mr Richard Acheampong): Mr Speaker, I second the Motion.

Question put and Motion agreed to

Resolved accordingly.

Mr Richard Acheampong: Mr Speaker, I will take the item numbered 35 at page 28 of today's *Order Paper*.

BILL — THIRD READING

Ghana Deposit Protection (Amendment) Bill, 2025

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I move:

That the Ghana Deposit Protection (Amendment) Bill, 2025 be now read the Third time.

Second Deputy Majority Whip (Mr Richard Acheampong): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

The Ghana Deposit Protection (Amendment) Bill, 2025 — *read the Third time and passed.*

Mr Ayariga: Mr Speaker, we may take the Motion numbered 7.

Mr First Deputy Speaker: Yes, the Motion numbered 7, Chairperson of the Subsidiary Legislation Committee.

MOTION

Education Regulatory Bodies (National Teaching Council) Regulations, 2025

Chairperson of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Education Regulatory Bodies (National Teaching Council) Regulations, 2025.

Mr Speaker, this Report was considered by your Committee having been laid by the Hon Minister for Education. We met as a Committee to consider the Regulations in the presence of the Deputy Minister for Education in accordance with Article 11(7) of the 1992 Constitution. Mr Speaker, let me refer you to page 5 of the Report, which deals with the purpose of the Legislative Instrument:

- (a) the purpose of this Regulation is to provide for the registration and licencing of teachers,
- (b) the training of teachers, the accreditation of institutions that offer teacher education and teacher development programmes,
- (c) the establishment of standards for teacher education,
- (d) the modalities for the continuous professional development programme for teachers,

- (e) the code of ethics and professional practice for the teaching profession,
- (f) a framework for the development of teacher education curriculum, and
- (g) the modalities for the exercise of the disciplinary powers of the Council over teachers.”

Mr Speaker, there were issues before the Committee on licensure examination, which is captured at page 6, paragraph 8.2.

The Committee observed that the Regulation provides for the conduct of licensure examination. The Committee sought clarification on its inclusion, given that the Minister for Education had earlier indicated an intention to abolish it. The technical team from the Ministry clarified that the examination will not be cancelled. Rather, the proposed Regulation seeks to redefine the manner in which the examination is conducted in order to address the challenges associated with its implementation.

Further, the licensure examination will be incorporated into the final year examination of the teacher.

Mr Speaker, I beg the *Hansard* to capture the Report as having been read and ask for its adoption. I so move. I thank you.

Introduction

The Education Regulatory Bodies (National Teaching Council) Regulations,

2025 was laid by Hon Minister for Education, Mr Haruna Iddrisu on 10th February, 2026 pursuant to Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee on Subsidiary Legislation for consideration and report.

Pre-Laying Consideration of the Instrument

Prior to the formal laying of the Instrument on the floor of the House, the Committee, as a standard procedure, met with the Deputy Minister for Education, Dr Clement Abass Apaak and his technical team, officials of National Teaching Council as well as officials of the Office of the Attorney-General and Ministry of Justice for deliberation on the Regulations to consider the proposed Regulations.

The Committee expresses its profound gratitude to the Deputy Minister and his team as well as officials from the Office of the Attorney-General and Ministry of Justice for attending upon the Committee to provide clarification on the Regulations.

Reference Documents

The following documents were referred to *inter alia* by the Committee during its deliberations:

- (a) The 1992 Constitution of the Republic of Ghana;

- (b) The Standing Orders of the Parliament of Ghana;

- (c) The Ghana Education Service Act, 1995 (Act 506);

- (d) The Ghana Education Act, 2008 (Act 778);

- (e) The Ghana Education Regulatory Bodies Act, 2020 (Act 1023); and

- (f) The Education Regulatory Bodies (National Teaching Council) Regulations, 2025.

The Scope of the Committee's Mandate

The Committee was guided by the provisions of Article 11(7) of the 1992 Constitution and Order 220(4) of the Standing Orders of Parliament in considering the referral. These provisions enjoin the Committee to determine whether a Regulation under consideration:

- a. is in accordance with the Constitution or the Act under which it is made;
- b. contains any matter which should more appropriately be dealt with in an Act of Parliament;
- c. contains imposition of any tax;
- d. directly or indirectly bars the jurisdiction of the courts;
- e. gives retrospective effect to any of the provisions in respect of

which the Constitution or the Act does not expressly give that power;

- f. involves expenditure from the Consolidated Fund or public revenues;
- g. appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act pursuant to which the Regulations were made;
- h. appears to have been unjustifiably delayed in its publication or in laying it before Parliament; and
- i. for any reason, in its form or purpose, requires clarification.

Background

The background to the Regulations are anchored in the statutory framework governing the regulation of the teaching profession and the operation of schools in Ghana.

Parliament passed the Education Act, 2008 (Act 778) to provide for the establishment of an educational system intended to produce well balanced individuals with the requisite knowledge, skills, values, aptitudes and attitudes to become functional and productive citizens for the total development and the democratic advancement of the nation and for related matters.

Section 29 of the Education Act, 2008 (Act 778) mandates the Minister responsible for Education to make regulations in consultation with the appropriate body, in respect of:

- i. the role, composition and any other functions of the inspectorate set up under section 7;
- ii. development and assessment of the curriculum for educational institutions;
- iii. the role of parent-teacher organisations in the education system;
- iv. the ownership of schools by a community;
- v. the fee structure in the education system;
- vi. the establishment, management and operation of private educational institutions;
- vii. information and communication technology in education;
- viii. specifying the objectives, mission management, structures and functions of the schools library and information directorate including the establishment of a central catalogue of libraries and library books;
- ix. distance education;

x.	science and technology education;	principles and purposes of this Act.
xi.	guidance and counselling;	In accordance with Section 29 of Act 778, the Minister for Education consulted relevant stakeholders and prepared a proposed Regulations to give effect to the Act.
xii.	private participation in education;	
xiii.	the determination of the relationship between the district education directorate and the education units of the religious bodies;	
xiv.	discipline in schools;	
xv.	gender equity at all levels and programmes of education;	Pursuant to Article 11(7) of the 1992 Constitution and Order 220 of the Standing Orders of the House, the Minister for Education introduced the proposed Regulations in Parliament to provide for regulation of the teaching profession, including teacher registration and licensing, training, accreditation of teacher education institutions, professional standards, curriculum development, continuous professional development, ethical conduct and disciplinary procedures.
xvi.	the provision of adequate facilities for persons with disability or special needs;	
xvii.	the provision of in service training for teachers;	
xviii.	the financing of education;	
xix.	a matter that is required to be prescribed or will give effect to this Act;	The Regulations were referred to the Committee on Subsidiary Legislation for consideration and report. The Committee has considered the referral and submits its report for approval.
xx.	acts that constitute misconduct and grave misconduct and the corresponding penalties;	
xxi.	the level of autonomy that is commensurate with the achievements of an educational institution; and	Purpose of the Legislative Instrument The purpose of the Regulation is to provide for a. the registration and licencing of teachers; b. the training of teachers; c. the accreditation of institutions that offer teacher education and teacher development programmes;
xxii.	any other matter that will advance or enhance the	

- d. the establishment of standards for teacher education;
- e. the modalities for the continuous professional development programmes for teachers;
- f. the code of ethics and professional practice for the teaching profession;
- g. a framework for the development of teacher education curriculum; and
- h. the modalities for the exercise of disciplinary powers of the Council over teachers.

Observations

The Committee made the following observations during its deliberations;

Compliance with the Constitution, Act 778, Act 1023 and Order 220 (4) of the Standing Orders

The Committee examined whether the proposed legislative Instrument complies with the 1992 Constitution, the Education Act, 2008 (Act 778) and the Education Regulatory Bodies Act, 2020 (Act 1023). The Committee also considered whether the proposed Regulations –

- a. contain any matter which should properly be dealt with in a substantive Act;
- b. directly or indirectly bar the jurisdiction of the courts; or

- c. give retrospective effect to any provision or law, inter alia.

After careful consideration, the Committee is satisfied that the proposed Legislative Instrument does not breach the Constitution or any other law. The Regulations were made pursuant to Section 29 of the Education Act, 2008 (Act 778), which authorises the Minister responsible for Education to regulate the teaching profession through regulations. The Regulations do not contain any matter that should be dealt with in a substantive law and do not impose any tax. The proposed Legislative Instrument also complies with the requirements of Order 220(4) of the Standing Orders of Parliament.

Licensure Examination

The Committee observed that the Regulations provide for the conduct of a Licensure Examination. The Committee sought clarification on its inclusion, given that the Minister for Education had earlier indicated an intention to abolish it.

The technical team from the Ministry clarified that the examination would not be cancelled. Rather, the proposed Regulations seek to refine the manner in which the examination is conducted in order to address the challenges associated with its implementation. Furthermore, the Licensure Examination would be incorporated into the final year examinations of teacher trainees.

The technical team also informed the Committee that research findings

revealed that one of the main factors accounting for the poor pass rate in the examination was the time lag between when teacher trainees complete their training and when they sit for the examination.

The Regulations also provide for a practical component to ensure a more comprehensive evaluation of teachers' competence.

Inability of Untrained Teachers to Take the Licensure Examination

The Committee observed that the proposed Regulations bar untrained teachers from taking the Licensure Examination.

The technical team from the Ministry explained that untrained teachers would not be eligible to sit for the examination. As indicated earlier, the Licensure Examination would form part of the final examinations of teacher trainees.

To ensure that untrained teachers are still able to qualify to teach, a special arrangement has been instituted to provide such teachers with structured training, after which they would be issued with a temporary licence, renewable annually. This would ensure that such teachers remain abreast of modern trends in teaching.

Conclusion

After careful consideration of the referral, the Committee is satisfied that the Regulations comply with the 1992 Constitution, the Education Act, 2008

(Act 778) and Education Regulatory Bodies Act, 2020 (Act 1023).

The Regulations do not contain any matter that ought to be dealt with in an Act of Parliament and do not impose any tax. The Regulations also comply with Order 220(4) of the Standing Orders of Parliament.

The Committee, accordingly, recommends to the House to adopt its Report and allow the **Education Regulatory Bodies (National Teaching Council) Regulations, 2025**, to come into force in accordance with Article 11(7) of the 1992 Constitution.

Respectfully submitted.

Ranking Member of the Committee (Dr Francis-Xavier Kojo Sosu): Mr Speaker, I rise to second the Motion and in supporting the Motion to quickly add that the Committee indeed observed that the Regulation does not offend our Constitution and it was within the limits of the powers conferred on the Minister for Education. Mr Speaker, I would want to also add quickly that when the concerns about licensure exam came up, indeed consistent with the policy directive of the President and the Minister for Education, it was obvious that clarification was that it is now going to be incorporated into the training of teachers. So, it is not going to be a separate thing completely as it currently is. Mr Speaker, I second the Motion and pray that the House adopts the Report. Thank you, Mr Speaker.

Question proposed

3:48 p.m.

Dr Yaw Osei Adutwum (NPP — Bosomtwe): Mr Speaker, I am so happy today that we have finally gotten a confirmation that the teacher licensure examination is not going to be cancelled. Good news for the education fraternity; It is a very good news. I am also happy to note that the Regulations are affirming that an arrangement will be made for the teachers to take the exams before they graduate. I think it is worthy of commendation. It does not put extra burden on the teachers after they graduate to then go back to examination centres and take the examinations. I think the Minister ought to be commended for that innovation.

In the area of untrained teachers, I know the Report is saying that untrained teachers will not be allowed to take the licensure exam, which is rightly so. But they have indicated that special arrangements will be made so that untrained teachers can teach. I want to underscore that the best practice around the world is for the Ministry to indicate that there is a shortage of trained teachers in the field where they are bringing the untrained. So it can be for Chemistry teachers if they were in short supply; Mathematics teachers if they were in short supply.

That way it is clear to us that not every untrained teacher is allowed to just give a special arrangement to have a one-year licence or one-year authorisation, but rather it is based on the establishment of need for teachers in that field. Thank you, Mr Speaker.

Osahen Alexander Kwamena Afenyo-Markin (NPP — Effutu): Mr Speaker, I want to just quote paragraph 8.2 on page 6 of the Report to make a very short submission.

The Committee observed that the regulation provides for the conduct of a licensure examination. The Committee sought clarification on its inclusion, given that the Minister for Education had earlier indicated an intention to abolish it.

The technical team from the Ministry clarified that the examination would not be cancelled. Rather, the proposed regulation seeks to refine the manner in which the examination is conducted in order to address the challenges associated with its implementation. Furthermore, the licensure examination will be incorporated into the final year examinations of teacher trainees.

Further, the technical team also informed the Committee that research findings revealed that one of the main factors accounting for poor pass rates in the examination was a time lag between when teacher trainees complete their training and when they sit for the examination.

Mr Speaker, I would hesitate in commending the Minister, though his effort is commendable. But this should send a strong signal to our teachers to be careful about our Friends in Government and the things they say. When a party in opposition makes promises and electorates rely on said promises, even

when they know that the particular matter they are complaining about is good, we must be careful and take everything they say with a pinch of salt.

We were promised that when the National Democratic Congress (NDC) comes into office, National Food Buffer Stock Company will no more be in charge of distributing foodstuff to schools and that the headteachers themselves will go and buy the goods from the market. When they came into office, rather, National Food Buffer Stock Company is still being used as the official agency for distribution of foodstuff to schools.

Mr Speaker, our Friends in Government, after all, knew that there was something good in the Akufo-Addo administration. They said boldly that they were going to cancel the licensure exams. They told teachers and promised them that in their time there will be no writing of licensure exams. They included it in their manifesto. In the NDC 2024 Manifesto —

Mr First Deputy Speaker: Hon Minority Leader, I recognise the Majority Leader.

Osahen Afenyo-Markin: Mr Speaker, he will have his time.

Mr First Deputy Speaker: Majority Leader, you have the floor.

Mr Ayariga: Mr Speaker, NDC never promised to cancel licensure exams. [**Some Hon Members:** Eii!] We promised to incorporate it into the

general examination system of the colleges. What we are doing today is fulfilling exactly what we promised to do. He should go and pick our manifesto and show me which page it is on. We said we were going to incorporate it. The way that they proposed to organise licensure exams is what we objected to and the manner they intended to do it. So, we said it will be incorporated into the general examination system. We never said we were totally abolishing it. No, it is not in our manifesto.

Osahen Afenyo-Markin: Mr Speaker, the Majority Leader must explain to us why he is licking his lips. He is licking it after doing what he did. He would have his time to argue. The Majority Leader is not showing a good example. If he would have his time, why does he not listen to me? When I am done, he will have his time.

Mr Speaker, they told the people of Ghana — the Minister for the Interior wants us to talk about recruitment. We are not talking about recruitment; we are talking about the licensure exam that his party promised to abolish. We are not interested in other conditions they claim they added. The language was clear that they would abolish the licensure examination. They do not walk the talk. Their Government is a government of walking contradiction; they say one thing and do another.

Where is the 1:3:3? Where is the GH¢6,000 per bag for cocoa farmers? Where is the electricity that they were supposed to reduce? What has happened

to the Teacher *dabre*? Mr Speaker, they must eat a humble pie and concede that after all, the Akufo-Addo Government laid a solid foundation. They should tell us a single social intervention that their tradition has introduced in this country.

They are struggling in recruitment. They knew they had 5,000 vacancies, yet they opened the portal for 506,000 people, then they now say 105,000 have qualified for medicals when they know they have only 5,000 vacancies. Now they say they have increased it to 40,000 for four years. It is the same way they promised teachers that they were going to recruit more, but they are not recruiting. They said no licensure examination, but now they are saying they accept that there will be licensure examination.

With time, the people of Ghana will know their true colours. Mr Speaker, I leave them to their own fate. If today Akufo-Addo's Government was a good government and introduced policies that they are continuing today. We have heard, we have seen, we accept, but posterity will be the ultimate judge.

Majority Leader (Mr Mahama Ayariga): Mr Speaker, let us go over paragraph 8.2 on licensure examination.

The Committee observed that the regulations provide for the conduct of a licensure examination.

The Committee sought clarification on its inclusion given that the Minister for Education had earlier indicated an intention to abolish it. The technical team

from the Ministry clarified that the examination will not be cancelled.

Rather, the proposed Regulation seeks to refine the manner in which examination is conducted in order to address the challenges associated with its implementation. Furthermore, the licensure examination will be incorporated into the final year examination of teacher trainees. This was the promise that we made. Mr Speaker, why is the Minority Leader not paying attention? He has raised issues, we are responding to the issues, and he is running away, and he is laughing. Mr Speaker, he is running away from the issues. He raised the issue, and we are responding to him. The Report says that the licensure examination would be incorporated into the final year examinations of teacher trainees—

3:58 p.m.

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Majority Leader, he is up. What is the point of order?

Osahen Afenyo-Markin: Mr Speaker, with respect, if the Majority Leader knows he has anything against me, he knows what to do; he should take me to the Committee of Privileges and Immunities. [*Laughter*]

Mr Ayariga: Mr Speaker, he has to apologise to teachers all over the country for seeking to mislead them. We did not promise that we were going to—We were against licensure examination in

the manner in which it is being conducted. Because what they did was to take away from teachers their right to automatic engagement as teachers once they graduated. That was the issue. We were against the fact that even after graduation, they now had to go and sit for another examination to be licensed as teachers at a fee. That was the complaint.

So, what we said we will do is that, we will include a licensure examination in the general examination process before graduation, so that the curriculum that we want to deal with, the one that will inform the licensure examination, will be incorporated into the general curriculum of the college. So that in the general examination, those aspects will also be examined, and when teachers graduate, they become entitled to be automatically enrolled as teachers.

Let it be known to teachers that from today onwards, once they graduate as teachers, they become entitled to be enrolled as professional teachers. *[Hear! Hear!]* The graduation is the licence, and once they have graduated, they are licenced teachers. This is a promise of the National Democratic Congress (NDC), and this is a promise that is being implemented today. The promise we are fulfilling today is that no one will take money again from teachers in the name of licensure examination, and not refund. Mr Speaker, I will now take my seat so that the Deputy Minister will wind up.

Deputy Minister for Education (Dr Clement Abas Apaak): I am grateful, Mr Speaker. Just to speak on the Report presented, and to indicate that we are

wondering where the technical team that the Committee refers to, came from? This is because what has been stated is not the position of the Minister or the Ministry. As far as the Minister and the Ministry are concerned, the licensure examination, as we came to meet, has been abolished. *[Hear! Hear!]*

The current arrangement is to incorporate the licencing process into the curriculum of the teacher trainees when they are in their final year. Mr Speaker, just as an example, the new dispensation includes teaching practice, which is now going to count towards licencing the teacher trainees, which was not the case in their version. When the NDC manifesto says that we are going to cancel the licensure examination and incorporate the licencing process into the final year examination of the students, we are right, and we are doing that. So, it is going to be 70 per cent—

Osahen Afenyo-Markin — rose —

Mr First Deputy Speaker: Hon Deputy Minister, let me recognise the Minority Leader.

Osahen Afenyo-Markin: Mr Speaker, this is a House of records. The licensure examination, which was introduced by the Akufo-Addo Administration, was a creation of law. Mr Speaker, the Deputy Minister, who is a well-respected member of academia, must know the use of certain phrases in this Chamber. If he says that it has been abolished, is he saying that he brought a law into this

House to amend the records? Is that what he is saying? There are students he has taught—

Mr First Deputy Speaker: Hon Minority Leader, he indicated clearly that the process—

Osahen Afenyo-Markin: Mr Speaker, you are not to join the debate.

Mr First Deputy Speaker: I am not joining the debate, but I am talking about what I have heard. He said the process—

Osahen Afenyo-Markin: Mr Speaker, no. With respect, he said that the NDC Government has abolished a licensure examination. Mr Speaker, he stated it as he stated it on authority, but he knows that the law creating the licensure examination is still in force. All these issues about conditions and using language to confuse us will not be accepted.

They promised teachers that there will be no licensure examination, so whether teachers write it before they graduate or after, the value is the same. They promised teachers that there would be no licensure examination. Mr Speaker, now, they claim that they have cancelled it; meanwhile, there is a law.

Mr Speaker, the Deputy Minister for Education should not bring propaganda into this Chamber. He should state the facts as they are. He is respected as a member of academia. He should not

bring down his own reputation because of politics. Mr Speaker, he has been appointed as a Deputy Minister for Education, a very noble Ministry, so he should check the pace at which he is moving and check the space. He should be careful with the language he is using.

Mr First Deputy Speaker: Hon Minority Leader, you are re-arguing rather than making a point of order. With all due respect, I cannot fault the Deputy Minister for Education. We were part of those who made that law, and the Deputy Minister will attest to the fact that the law is about a teacher having a licence to be able to teach, but the process is not by the law.

Deputy Minister for Education, you may continue.

4:08 p.m.

Dr Apaak: Mr Speaker, I am grateful for giving me the chance to clarify. That was what I was seeking to do, and I have made that point.

Question put and Motion agreed to.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Ayariga: Mr Speaker, let us take the Security and Intelligence Agencies Bill, 2025, item numbered 18.

Mr First Deputy Speaker: Hon Members, the Security and Intelligence Agencies Bill, 2025 at Concentration Stage.

BILLS — CONSIDERATION STAGE

Security and Intelligence Agencies Bill, 2025

*[Resumption of Consideration from
17/03/2026]*

Mr First Deputy Speaker: Hon Members, we stood down clauses 14, 16, and 17 for some work to be done on them. Leaders, have those provisions been worked on?

Mr Dafeamekpor: Mr Speaker, the Winnowing Committee has not met in respect of those three clauses that we stood down. So, let us proceed with the outstanding ones. Once we are done, we will come back to those clauses.

Mr First Deputy Speaker: Yes, Chairperson of the Committee, I understand one of your amendments has been omitted. You may move it.

Chairperson of the Committee (Dr Zanetor Agyeman-Rawlins): Mr Speaker, we had a new clause that was an amendment proposed by the Committee, which unfortunately has not found expression in the *Order Paper* for today so, I will make reference to the *Order Paper* for yesterday.

Mr First Deputy Speaker: Yes, you may move that amendment.

Dr Agyeman-Rawlins: The amendment proposed is to add a new clause after clause 35 as follows:

“Parliamentary oversight of national security.

“(1) Parliament shall have oversight in respect of national security in accordance with Article 103 of the Constitution;

(2) Parliament may assign the responsibility under Section 1 to a committee of Parliament appointed for the purpose;

(3) A Member of Parliament or an officer of the Parliamentary Service shall not proceed upon the business of the committee in subsection 2 unless the Member of Parliament or officer of the Parliamentary Service is vetted in accordance with the applicable national security vetting procedures;

(4) For the purpose of this section, national security means, office of the national security coordinator and intelligence agencies.”

I so move.

Mr First Deputy Speaker: Hon Members, the proposed amendment of the new clause is for the consideration of the House.

Yes, Hon Minister for the Interior?

Alhaji Mohammed-Mubarak Muntaka: Mr Speaker, I am worried because it is not advertised in the *Order Paper* for today. I want to ask, is the oversight role of the Committee on

Security and Intelligence over this national security apparatus in doubt? There is no doubt about it because it is in the Standing Orders. To put it here, especially what I saw yesterday, I am concerned because when you say vetted by the national security apparatus, I can bet you if the national security has to vet Members of Parliament before they are put on a Committee, a lot of Members would fail. That is not within the remit of the national security. For Members of Parliament, their verdict is given by their constituents. And when they get to Parliament and Parliament decides to put them on committees, no other person has authority to vet and to decide whether that Member is fit to be on that committee or not.

So, for me, let us keep it as it is in the Standing Orders because what is in the Standing Orders is more than adequate. I cannot recollect since I became Minister that I have been called to appear before a parliamentary Committee which I refused, or some information has been requested of me and I declined. So, to put it into the parent Act is problematic. But I know we are at the wisdom of the House.

Mr First Deputy Speaker: Yes, I think the appropriate word should be “sworn in”, not vetted. They have been swearing—*[Interruption]* The intention is to vet?

Yes, Hon Majority Leader?

Mr Ayariga: Well, I think the Committee, during its work looked across the globe to find out what has

been the practice. I know that in the case of South Africa, there is specific provision in their security and intelligence agencies legislation which recognises and specifically mentions the parliamentary Committee. I believe the Committee tried to borrow from these examples that they have seen in their research and consultations.

The issue raised now is in the context of Ghana, why do we want to legislate a committee? And that is the issue. Because the legislation of committees belongs to our Standing Orders. Do we want to legislate them in an act of Parliament? And then if we decide to amend our Standing Orders, what happens? We have a difficulty. We cannot amend those provisions. We have to come by an act of Parliament in order to amend those provisions.

So, I think the proposal is that we plead with the Committee to drop this proposal so that we keep to what we have been doing in our Standing Orders, that the Committee is established pursuant to the Standing Orders of Parliament. The Committee performs its functions on the authority of the Standing Orders of Parliament, and that we do not subject the Committee to the whims and caprices of an agency under the Executive arm of government.

The requirement is that Members be vetted because of the information that will be available to them. That I think is the basis for requiring that they be vetted because the Committee is going to be compelling the Minister for national security or the ministers responsible for

national security to disclose information and the national security coordinator to provide briefings. When they do provide the briefings, there is an issue about the safety of the information that is being handed. So, they thought that they should put in a check, which is that the national security should vet the Members of Parliament. If you ask that they should mandatorily give you the information, and they are now under compulsion to provide that information, yet they cannot vouch for the Members of your Committee, what happens? That was when the proposal arose that they should be vetted.

4:18 p.m.

So, it was to deal with a problem that the security and intelligence agencies raised at Committee but we are urging the Committee to drop the proposal. Let us have what is in our Standing Orders to prevail. I think that it has served us well enough. The Committee on Security and Intelligence itself is a new Committee. In fact, this is the first time we are having that Committee. Let us allow the new creation to run a couple of years, and then if we think that we should enhance it along the South Africa model, we can consider it again at a future date. So, I urge the Chairperson and her team to consider dropping the matter.

Mr First Deputy Speaker: Yes, Chairperson?

Dr Agyeman-Rawlings: Thank you, Mr Speaker. The Majority Leader is a member of the Committee. Mr Speaker, the danger we face, because international

best practice makes provision for parliamentary oversight, and in all the jurisdictions where there is a Select Committee on intelligence, there is a different level of clearance, especially in order to remove the level of secrecy that intelligence agencies always place when it comes to the disclosure of information to Parliament.

We are currently faced with issues of certain levels of information that Parliament did not have access to with regards to intelligence agency activity. If it is the decision of the House that we abandon explicitly talking about parliamentary oversight, as we progress in this Bill, you will see there is a part that speaks to the fact that there is no obligation for disclosure to Parliament, which means we are back where we started in terms of this nexus between secrecy and transparency when it comes to oversight.

Mr First Deputy Speaker: So, Hon Chairperson, I would direct that, you have seen the sense of the House, they are really not against the exercise of the oversight, but what they are against is the vetting. The question is, if you say vetting, Members of Parliament who belong to that Committee will be vetted by who? And after the vetting, who gives the approval? So, if it is the National Security Coordinator, can the National Security Coordinator have the power to vet a Member of Parliament and disapprove that that Member of Parliament is not qualified to belong to a Parliamentary Committee? That is where the difficulty lies. So, you can look at your amendment and do away with that

aspect and let it be captured by the Order Paper and then we will take a look at it regarding the exercise of the oversight.

So, Hon Members, I believe clause 17, particularly the proposed amendment in the name of Hon Kojo Oppong Nkrumah, though he was not here, has been accepted but the only thing is that we did not put the question to split the functions of the external and the internal.

Yes, Hon Minister?

Alhaji Muntaka: Thank you, Mr Speaker. Yes, in Act 1030 it was separated, but there is a reason for merging it. If we look at the proposed Bill, the functions have been merged and made not to be very open because of the functions of the research department. If we separate it like he did, we give much elaboration about it and we are exposing our officers abroad.

Everybody around the world knows some of the things these research officers do but it is not written in black and white so why do we want to do that? So, if we look at the way it is in the proposed Bill, technically we will see that almost all the major functions for both have been incorporated and there is a reason for doing that. I really wish my Colleague, Hon Kojo Oppong Nkrumah was here to draw his attention why this is merged because we just do not want it to be a source of exposure to our officers.

Mr First Deputy Speaker: Yes, so Minister, I would direct that with your involvement, you look at clause 14, 16 and 17, together with Members of the

Winnowing Committee and the proponent of those amendments and then we can deal with the issue once and for all. Now we move straight to clause 36.

Clause 36 — Oaths

Mr First Deputy Speaker: Chairperson of the Committee?

Dr Agyeman-Rawlings: There are no proposed amendments, Mr Speaker.

Mr First Deputy Speaker: Hon Members, any proposed amendment to clause 36? In the absence of any proposed amendment, I will put the question.

Dr Agyeman-Rawlings: Mr Speaker, I beg your pardon.

Mr First Deputy Speaker: Do you have amendments on clause 36?

Dr Agyeman-Rawlings: Yes, there was.

Mr First Deputy Speaker: Hon Members, it looks like we put the question on clause 36, it is talking about effect of warrant.

Dr Agyeman-Rawlings: In a previous *Order Paper* from the 17th, there was a proposed amendment to clause 36, which was as follows, subclause 2, line 3, *delete* “oath” and *insert* “oath of secrecy on leaving office”.

Question put and amendment agreed to

Clause 36, as amended, ordered to stand part of the Bill.

Clause 37 — Authorised disclosure of information.

Mr First Deputy Speaker: Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, the Committee has no proposed amendment.

Mr First Deputy Speaker: However, we have an amendment standing in the name of Osahen Alexander Kwamena Afenyo-Markin. You have the floor.

Mr Shaib: Thank you very much, Mr Speaker. I rise to move the amendment on clause 37 on behalf of Osahen Alexander Kwamena Afenyo-Markin.

Amendment proposed — Subclause (2), paragraph (e), *delete* and *insert* the following:

“(e) where a court of competent jurisdiction determines that the disclosure is strictly necessary in the public interest and proportionate to the objective pursued.”

Mr Speaker, I so move.

Mr First Deputy Speaker: Clause 37 is talking about use of internal grievance procedure.

Mr Shaib: I am sorry, Mr Speaker, I think I had it mixed up. Yes, I have seen the correct one. Mr Speaker, I

respectfully move this on behalf Osahen Alexander Kwamena Afenyo-Markin.

Amendment proposed — *Add* the following new subclause:

“(3) An officer or employee shall not — Mr Speaker, is that it?”

4:28 p.m.

Mr First Deputy Speaker: Hon Jerry Ahmed, I was just drawing your attention to the misalignment of the proposed amendment. If you look at the Bill itself, clause 37 is talking about use of internal grievance procedure. That you complain to the Coordinator and if the Coordinator did not work or he has addressed it but you are dissatisfied, you petition the Chief Justice and the Chief Justice would form a committee that is a tribunal that will give a hearing beyond which it is open to wherever you think you can seek redress.

These are the internal grievance procedure. That is why the provision is saying that despite the provisions of this Act on redress of grievances, an employee of an intelligence agency shall at the first instance resort to the internal grievance procedure set out in the conditions of service and code of conduct of that intelligence agency before resorting to the procedure set out under this Act. That is what clause 37 is talking about.

And then the amendment here is subclause 2, *delete* e, and clause 37 does not have subclause 2. Oh, sorry, I am using the Act instead of the Bill.

Mr Shaib: Mr Speaker, may I proceed now? I beg to move, amendment proposed – subclause (2), paragraph (e), *delete* and *insert* the following:

“(e) where a court of competent jurisdiction determines that the disclosure is strictly necessary in the public interest and proportionate to the objective pursued.”

Mr Speaker, I so move.

Mr First Deputy Speaker: Hon Members, any other view? Yes.

Mr Dafeamekpor: Mr Speaker, I have a further amendment to this amendment. We would have to delete “strictly necessary”. That is subjective. So, in view of Act 323, section 51, it is relevant evidence. So it should read,

“where a court of competent jurisdiction determines that the disclosure is relevant in the public interest and proportionate to the objective pursued.”

Mr Speaker, I even think humbly that “and proportionate to the objective pursued” should also be deleted. So that it reads,

“where a court of competent jurisdiction determines that the disclosure is relevant in the public interest.”

Then we end it there. “Proportionate to the objective pursued” is not important in this regard. Once the court comes to the

determination that it is relevant in the public interest, then a decision will be made. We do not have to qualify it with strictly.

Mr First Deputy Speaker: Let me hear Hon Patrick Boamah.

Mr Patrick Yaw Boamah: Mr Speaker, I think this proposed amendment has to be looked at. I am not in support of it, respectfully, because the apprehension of the proponent is addressed by subsection 2 of 37(2), which gives the person who has such information a wide range of options to follow. Because if we do not curtail that, a serving officer will bypass the established structure in the name of having some information and divulging it in good faith. If one is a serving officer and has information, they should go through the structure.

We need to protect the structure from people dancing around it. That is why subsection 2 has been provided. That is why in subsection 2, we have (a), (b), up to (e) to follow, and it deals with and cures any apprehension from anyone who works within the system.

Mr Speaker, thank you.

Mr First Deputy Speaker: Yes, I also share your concern that the proposed amendment is problematic, but it is however, for the consideration of the Floor. Yes, Hon Minister.

Alhaji Mohammed-Mubarak Muntaka: Mr Speaker, with the greatest of respect, this is completely misplaced.

Because what we are doing here concerns who and whom we can disclose information to. And it is first said that it is to a public officer who has authority to investigate an alleged contravention of a law or to the Attorney-General if the information is required for an investigation or for prosecution.

Then it talks to the Minister for Foreign Affairs, because of the research personnel, if the information relates to the conduct of international affairs of the country. It then talks about the Minister for Defence because of external intelligence, among other things. Then it talks about the Chief Justice, if it is about the Judiciary. Then it came to give a much broader group, including the Inspector-General of Police (IGP), and all the others.

Now, he wants us to delete that and put what? It is completely misplaced. We have to understand what the whole thing is about. It is to ensure that a Minister of State—For example, something is happening in the transport sector. There is an intelligent person who has information that can be relayed to the Minister for Transport. There is something happening, and the Speaker of Parliament needs to be informed. They can come and inform him. There is something happening in Bimbilla, and the MP for Bimbilla needs to be informed. There is a public officer who needs to know that information.

Now, he wants to delete all that and put what there?

Mr First Deputy Speaker: So, in the circumstances of that nature, will he go to court for the court of competent jurisdiction to determine before he can provide that information?

Mr Nitiwul: Mr Speaker, I think that maybe we will talk to the Leader to move it to maybe the section that deals with the oath of secrecy. Maybe that would be all right because he seeks to talk about when one would disclose information and has not committed a crime. And there are only two possible places, either the court determines it, or it is put in the Bill. If, for example, I take an oath of secrecy, the Bill will give me an opportunity to talk to somebody if I see that someone is committing a crime.

But for this particular clause, it is just looking at how one can disclose information. It is not seeking to criminalise it or not. It states who one can give information to, or who one should not give information to. Whatever the case, clause 2 must stay, because Mr Speaker, clause 2 gives them, the officer and all other persons mentioned here, the broader opportunity to be able to divulge information as and when necessary. Also, we should be very careful. When we are setting up an agency, we should be very careful not to give loopholes. Otherwise, people will exploit it, and tomorrow we will have problems, especially with giving lower-level officers loopholes.

If we give them loopholes, Mr Speaker, the managers or the senior officers cannot manage them. So I think

that maybe we should stand, I do not know—

Mr First Deputy Speaker: Yes, Hon Bryan Acheampong.

Dr Bryan Acheampong: Mr Speaker, the contention here arises from clause 2, which states that the National Security Co-ordinator or a security and intelligence agency, the agency in this case itself, may permit. So one requires permission from the Security Co-ordinator before one can make a complaint about the National Security Co-ordinator.

So what the amendment seeks to do—

Mr First Deputy Speaker: He is talking about disclosure; it is not a complaint.

Dr Bryan Acheampong: Disclosure of information about an action of the National Security Co-ordinator. No, I am saying that one is disclosing information, and the act is—

Mr First Deputy Speaker: Hon Bryan Acheampong, 37(1) says that:

“(1) An officer or employee under this Act shall not disclose any information obtained in the performance of a function under this Act, except as required by this Act or any other enactment.

(2) Despite subsection (1), the Council, the National Security Co-ordinator or a security and

intelligence agency may permit the disclosure of information...”

So, “disclosure of information”, not complaint.

4:38 p.m.

Dr Bryan Acheampong: Mr Speaker, if in the performance of one’s duty, one has come across information about the Council, Co-Ordinator, any other person, the Act says that you should seek the permission of the coordinator. It is there and in English; I read the same thing as part of the deliberation.

Mr First Deputy Speaker: He is not talking about complaints, so where are you getting that from?

Dr Bryan Acheampong: Mr Speaker, I read:

“Despite subsection 1, The section one says an officer, employee under this Act shall not disclose any information obtained in the performance...”

I understand that if in the performance of my duties, I come across an information, I shall not disclose. But if the information is about the Co-Ordinator—

Mr First Deputy Speaker: Where is it stated that the information is about the Co-Ordinator ?

Dr Bryan Acheampong: Mr Speaker, the information that you have come across in the performance of your duty can be about anybody and the

coordinator is one of them. The subsection 2 says that, if you would make that report, you should go and seek the permission of the same person—The subsection 2 says: “...despite subsection 1, the council, the national security Co-Ordinator may permit the disclosure...”—[*Interruption*—No, I have read it; I am the Ranking Member of the Committee.

Mr First Deputy Speaker: So, are you in support of the proposed amendment in clause 37?

Dr Bryan Acheampong: All the amendment is saying is that, the Co-Ordinator must permit you before you disclose—it is there in black and white. If the Co-Ordinator must permit you then what the amendment is seeking to do is that, you have not committed an offence if you disclose it to these people. That is all what the amendment is seeking to do. Because other than that, it is saying that the Co-Ordinator or the security agency may permit the disclosure of that information.

The officer would have to go to them and they have to permit you to disclose that information. If the information is about them, why do you go to them for them to permit you to disclose? So, the amendment is saying that if you disclose it to the Inspector General of Police (IGP) and the Chief Justice, then you should be exempted from having committed an offence. That is what the amendment is saying.

Mr First Deputy Speaker: No, the amendment is to the effect that delete and insert the following, as in item “e”—

Dr Bryan Acheampong: It says add the following new subclause—

Mr First Deputy Speaker: It says subclause 2, paragraph “e”, delete and insert the following; that is the amendment under consideration. Maybe you are talking about something else but not in relation to the amendment under consideration.

Mr Jerry Ahmed Shaib: Mr Speaker, it is in reference to the same thing. It is only in the second part. So, maybe you have not adverted your mind to it.

Mr First Deputy Speaker: No, but we do it one after the other and not the combined part—Yes, but the amendment on the Floor now is on item (v).

Mr Shaib: Mr Speaker, you may proceed.

Mr First Deputy Speaker: Very well.

Hon Members, I would put the Question.

Mr Shaib: Just for your attention, that is part of the process and I am happy that we are debating and bringing—

Mr First Deputy Speaker: So, I would put the Question.

Question put and amendment negated.

Mr First Deputy Speaker: Hon Members, we move to the item (vi) which stands in the name of Osahen Alexander Kwamena Afenyo-Markin.

Mr Jerry Ahmed Shaib on behalf of Osahen Afenyo-Markin: Mr Speaker, I beg to move for the amendment of 37(3) that we *add* the following new subclause:

“(3) An officer or employee shall not commit an offence under this section where the disclosure is made in good faith to the Inspector-General of Police, the Chief Justice, the Attorney-General, or a Parliamentary Committee for the purpose of exposing illegality, abuse of authority, or gross human rights violations.”

Mr Nitiwul: Mr Speaker, I think that we should look at this clause very well. I think maybe it seeks to cure 37(1) which reads that,

“An officer or an employee under this Act shall not disclose any information obtained in the performance of a function under this Act except as required by this Act or any other enactment.”

So, you are banned from disclosing any Act. But if for some reason you want to disclose an act, you need permission from four categories of people. One, the Council or the National Security Co-Ordinator, who is the second person, or the Security and Intelligence Agency. So, it is either the external or internal.

Mr Speaker, so, if I am an employee, I am banned from disclosing any information under clause 37. But if the information I want to disclose is about some bad act within the external branch, whom do I go to?

Mr First Deputy Speaker: Do you not have the Council?

Mr Nitiwul: If the council, agency or coordinator is unwilling to give the permission to me, it means that—remember that the coordinator is an officer of the Council. The coordinator and council are the same.

All the security agencies want to be referees in their own cause. Nobody else can disclose any information except they give the permission to disclose; I think that one may be dangerous. So maybe what the proposer is trying to say is that, there should be a window to be able to report to other people outside these three categories of people without having to commit a crime.

Mr First Deputy Speaker: So, look at clause 37, 21 of the Bill—*proviso*.

Mr Nitiwul: Clause 37(2) says: “to a Minister of State or a person in public service, if the disclosure of the information is essential to the public interest...” I think it covers—

Mr First Deputy Speaker: So, it has taken care of it. So, to bring this “...despite these particular provisions...”—

Mr Nitiwul: Mr Speaker, you are right. I take your guidance. I think, if we are to delete clause 37 2(e), as in the first proposal—If we had deleted “e” as in the first proposal then—You are right.

Mr Shaib: Mr Speaker, with all due deference to the Minister, it is a matter that we are all debating on. We should not be using words like “we are wasting time.” It has to be done cautiously.

Mr First Deputy Speaker: Mr Jerry Shaib, I have just reprimanded Members, particularly Mr Nitiwul, that when somebody speaks and it is not into the microphone but your response goes into the microphone, you should go and take the *Hansard* and look into it. What you are responding to, is not captured. But your response is captured by the *Hansard*.

Mr Shaib: Mr Speaker, it is a trap that I have fallen for, but I have heard you. so, just for the purposes of bringing to your notice—

Mr First Deputy Speaker: So, let us hear from Dr Bryan Acheampong and then to Mr Shaibu and then we would close the chapter.

Dr Bryan Acheampong: Thank you very much.

I support the amendment, especially making reference to the IGP, Chief Justice, and Attorney-General, because it is specific.

If we go through the Bill, it makes reference to some specific individuals.

4:48 p.m.

Mr First Deputy Speaker: So, let me ask you a question, having regard to (e), are these individuals mentioned not persons in public service?

Dr Bryan Acheampong: Mr Speaker, (e) is talking about almost 500,000 people on the government payroll.

Mr First Deputy Speaker: Yes, when it is in the interest of the public.

Dr Bryan Acheampong: Yes, that is talking about the 500,000 people—

Mr First Deputy Speaker: Yes, so does it include the people mentioned here?

Dr Bryan Acheampong: Yes, but to be specific, to avoid confusion in the mind of the person who seeks to report.

Mr Speaker, if that is the case, we might as well just put the Bill to read; “to any person in the public service” and that would have given us a much broader reach. But to be specific, so that there is no confusion in the mind of the person reporting, the Leader is recommending that we should add the IGP, the Chief Justice, Attorney-General and the Parliamentary Committee on Security and Intelligence, just to make it specific.

Mr Speaker, it will not hurt. I do not think that they have a stationary issue in adding those four lines.

Mr First Deputy Speaker: Well, having regard to our security architecture, I wonder if this will be proper, but let me hear from Hon Shaibu Mahama, then I would put the question. Please be brief.

Mr Shaibu Mahama: Mr Speaker, the gravamen of 37(2) is for permission to be granted to the officer before information can be given out. So, if we read 37(2) closely, despite subsection 1, the Council, the National Security Co-Ordinator or a security and intelligence agency may permit. So, the operative word is permission granted—

Mr First Deputy Speaker: Hon Members, I intend to put a question on the proposed amendment by Osahen Alexander Kwamena Afenyo-Markin moved by Hon Jerry Ahmed Shaib.

Question put and amendment negatived.

Clause 37 ordered to stand part of the Bill.

Clause 38 — Offences for disclosure of information and identity.

Mr First Deputy Speaker: Yes, the first amendment is standing in the name of Hon Osahen Alexander Kwamena Afenyo-Markin.

Mr Shaib: Mr Speaker, I beg to move for an amendment proposed by Osahen

Alexander Kwamena Afenyo-Markin, and it has to do with Subclause (2), line 2, *delete*

“Less than five years and not more than ten years” and *insert* “not exceeding ten years”

Mr First Deputy Speaker: Yes, but by practice in all our legislations, we use the word not more than and not less than. Is that not the word that we have been using? So why are we now departing from the regular legislation to not exceeding?

Yes, Hon Shaibu Mahama?

Mr Shaibu Mahama: Mr Speaker, we have been talking about consistency in our lawmaking, and so we have not used exceeding. Please, let us just avoid introducing new words that do not make any difference.

Mr First Deputy Speaker: Because the punishment set the minimum and the maximum. So, if you said not exceeding, it means you are not setting the minimum, you are only setting the maximum and with every punishment, the law must set the minimum and the maximum. That is why with all the laws, we say not less than this and not more than this.

Yes, Hon Nitiwul?

Mr Nitiwul: Mr Speaker, I think that he is trying to avoid the situation of setting a minimum age of not less than five years. So, it means that if you were to contravene this clause by sharing information illegally, you would go to prison for no less than five years. Of course, it should not be more than 10 years. So, the judge can give you five and

a half years, six years, like that until you get to 10 years. Is that right?

Mr First Deputy Speaker: Yes.

Mr Nitiwul: What he is seeking to do is to give the judge the discretion of giving you one year, six months or two months. Because that is what he is seeking to do, basically. He looks at the offence and thinks that if he gives somebody five years because for some reason, he has made a mistake on disclosing information—

Mr First Deputy Speaker: Hon Nitiwul, then that is not how the proposal is supposed to be. So, if you are suggesting that the minimum should be one year, then you said not less than one year and then not more than—then you set the minimum and the maximum limits. But when you say not exceeding, so it means the judge will have a cause to say go home. Because you did not tell the judge the minimum sentence. That is why by practice, you give the minimum and the maximum, within which the judge must exercise the discretion based on the gravity of the offence. So, for every offence, there must be a minimum and a maximum punishment.

Mr Nitiwul: You are representing—I think that we should look at it and see whether going to prison for five years for disclosing that information is a good thing or not. I think that we should reduce it. It is excessive punishment. Seriously.

Mr First Deputy Speaker: But in the first place, let us deal with the

amendment in question, so that if there is any further amendment, it can be proposed.

Mr Shaib: Mr Speaker, can we still look at the period whilst we are discussing this? Can we now rather revert to maybe one to 10 years or zero to 10 years?

Mr First Deputy Speaker: That is why I am saying that having regard to the proposed amendment on the Floor? Unless you want to abandon the amendment, so then do so, so that we can deal with it.

Mr Shaib: Mr Speaker, that is abandoned.

Mr First Deputy Speaker: Hon Members, the amendment is accordingly abandoned. Now, I would put the question on entire clause 38 in the absence of any further amendment. If there is a further amendment, please let us do so before I put a question on entire clause 38.

Mr Shaib: Mr Speaker, I am seeking to have a further amendment to say that it should rather read zero to 10 years instead of five to 10 years. So less than, or a minimum of zero, and not more than 10 years. Zero means that the person can be cautioned and left.

Mr First Deputy Speaker: Let us ask the drafters. Is that what you intend to do? Sometimes punishment is supposed to be deterrent.

Yes, Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, just as a point of perhaps information, Act 1030, the same, it is under Offences for Disclosure of Information. This has actually been lifted from Act 1030, exactly as it is in the new Bill.

Mr First Deputy Speaker: I believe if we go further and look at Act 526, it may be the same provision.

Mr Shaib: Mr Speaker, that is the problem with the law and this is the platform to correct it.

Mr First Deputy Speaker: No, if a provision has served us for all these years, we should have a very good reason for departing from it. I maintain from the beginning that the essence of the current amendment is just to do away with the enactment of the Ministry and the functions of the Minister.

Yes, Dr Bryan Acheampong?

Dr Bryan Acheampong: Mr Speaker, on this consideration, you have made this statement that we are not changing all the Acts. We are just amending certain parts. We could have been done with that and then we would not be here. But if we seek to change the law, respectfully, let us go through some parts that many people—

Mr First Deputy Speaker: Maybe you do not get the angle from which I am coming. I even added that to change it, you must have a good reason.

Dr Bryan Acheampong: Act 526 (1030) has not served us well and we are

here to make changes. People have gone to prison because the judge's hands have been tied for something very little, for information that is trivial. But because the judge's hands have been tied by the law; they had no choice. So, if we have an opportunity to make this amendment, the crime has been committed, let the judge decide whether it will be a caution to go home for 10 years.

4:58 p.m.

Mr First Deputy Speaker: So as a former Minister, would you want to work with zero sentence?

Depending on the gravity of the offence, people have gone to prison for something that—

Mr First Deputy Speaker: Yes, Hon Minister.

Alhaji Muntaka: Well, Mr Speaker, my worry is, it is former Ministers who were in the security space that are saying this. Maybe because they are in opposition, they need information. *[Laughter]* No, that was on a lighter side, obviously.

Mr Speaker, they know the gravity of some of the information that they have handled in the past, and we are handling today. At times, you carry so weighty an information that sometimes you may wish to even discuss it with your wife, but you cannot because you know the gravity of that information, its implication when it gets out, and how it can just destabilise—Information from somebody from the Security and

Intelligence Agency can just destabilise the whole country. It can just create deaths; people can just lose their lives. So, when we begin to say that, “oh, this is minimum”—What would we use, which scale would we use to measure as to which one is grievous and which one is not grievous? That is why it is important for them to know that they are not to disclose the things that they get to see in their work. If they fail to do so, then there will consequences. So that people would be watchful. It is not a must that you must be in the Security and Intelligence Agencies. You have the right to resign.

But, Mr Speaker, we should also remember that there is the Whistleblower Act, which gives people also another route. But once you are working in this environment, you have chosen to be a slave to information and to zip your mouth. You have an option to resign and become a parliamentarian, where every day you can come to the Chamber and talk the whole day, like me. But to say that we should make the sentencing minimum—

Mr Speaker, my only worry is that former Ministers who have operated in this sphere and know the gravity of some of the information—Mr Speaker, even if you point a gun to the former Minister for Defence, I know with the information that he has, he would rather die than say them, because he knows what the consequences of saying them will be. But somebody could be reckless and trade it off for peanut. So, that is why these sentences are there, and it has been there for all these years as a guardrail.

So please, let us keep the country safe, because virtually, we know, the only group that is left that we can vouch for—the former Minister for Defence, and Dr Bryan Acheampong have been in the security and intelligence space before—are our people in the security and intelligence agencies. They are the only group left. If we want to open that lid, we know the consequences. So please, let us leave it as it is.

Thank you, Mr Speaker.

Mr First Deputy Speaker: I think it was during your tenure of office that they brought a regulation which says that if an intelligence officer is even going to marry, the kind of person that the intelligent officer must marry, must be approved. These are some of the reasons.

Dr Bryan Acheampong: Mr Speaker, I take this as permission to speak.

Mr Speaker, the former Minister for Defence was a Minister for eight years, and I was a Minister of State for Nation Security for six years; we know what we are talking about. We are not talking about information that comes to us or some of our senior subordinates.

This Act also covers a gateman standing at National Security. If we ask him if the Co-ordinator is available, and he says that he has not seen the Co-ordinator or that the Co-ordinator has left, he would go to prison for five years because he has disclosed information.

Mr Speaker, we should let the judge decide the gravity of the offence,

whether the person gets six years—In this case, if we say a minimum of five years and maximum of ten years, whether the person gets six years, seven years or ten years. Once that decision is to be made by a judge, all we are saying is that caution is also a form of punishment; they should go and sin no more. A fine is a caution. So, we should bring the minimum sentence to the barest minimum and leave the decision of the length of the sentence to the judge; that is all we are saying.

Mr First Deputy Speaker: Hon Members, the proposed amendment—

Yes, I think we will take the last comment and then I will put the Question.

Mr Ayariga: Mr Speaker, are we looking at clause 38?

Mr First Deputy Speaker: Clause 38(2)

Mr Ayariga: Yes, clause 38 (2)—*[Interruption]*. So, I should read clause 38(1), to show that I understand. All right.

Mr Speaker, I read:

“Subject to the Constitution and to section 37, a person shall not disclose any information obtained by that person or to which that person had access in the performance or functions under this Act or to which that person had access in the administration or enforcement of this Act and from which there can be inferred...”

The operative word is “inferred”.

“... the identity of any other person who is or was a confidential source of information or assistance to agencies under this Act, or

a person who is or was an employee engaged in covert operational activities of the security and intelligence agencies.”

Mr Speaker, in some jurisdictions, you will be hanged. Five years is too generous.

Mr First Deputy Speaker: Yes, it is not any ordinary information as in the case of a gateman.

Mr Ayariga: That you are a member of the agency, you are involved in implementing the agency’s mandate administratively, and you go and disclose the identity of an informant or the identity of an agent involved in covert operation and we are talking about five years? Who even said five years? Five years is too generous because that disclosure can lead to the person losing his life. We only need to read books about the Mossad and their operations and what usually will happen. Once you disclose the identity of the person, they would be killed. So, why should you, a professional, disclose the identity and think that we should just hand you a caution and then say you should go home? Why have we ever heard that?

But I cannot understand that coming from a former Minister of State for National Security because he must do

whatever it takes to protect their operatives. The operatives must know that when they take the risk to engage in a covert operation, nothing will be done to compromise their identity. Why? Because somebody can take money and disclose the information and just go to prison for five years, come out and enjoy the booty. So, I even think that five years is too generous.

So, I beg you, let us leave it. If we would not even raise the bar, let us not reduce it because in my view, the bar should actually be raised. I will not work for an intelligence agency if I know that when my identity is compromised, the person who compromised it would go to prison for only five years.

Mr Nitiwul: Mr Speaker, the Majority Leader may be passionate, but when we read it well, who is prohibited from the information being disclosed to, from what he has read? If for instance, I go today and disclose the information to the President, will I go for five years?—[**An Hon Member:** No.] What is the meaning of no? So, who determines that?

Mr First Deputy Speaker: Hon Nitiwul, we came from clause 36, and clause 37, before getting to clause 38, which is creating the offences. So, the previous provisions guide as to whom and the circumstances that the information can be disclosed, and those circumstances are not being criminalised. But it is outside those circumstances, which is why they are providing for a punishment.

Hon Members, let us not trivialise this. It is not just like a security at the gate stating that the Minister is there, no. This is talking about the identity of a covert person. It is such a serious issue.

So we should not trivialise it by saying that the punishment should be from zero. Oh no!

5:08 p.m.

Mr Shaib: Mr Speaker, I think that I am getting more aligned with the Majority Leader's submission. Save that, I want to find out — Hon Majority Leader, since you made the submissions, I want to find out from you, can the Minister of Foreign Affairs, Hon Samuel Okudzeto Ablakwa who went to Chatham House to make some disclosures, be a part of the five years to 10 years? Does he find himself within the remit of five to 10 years?

Mr Ayariga: Mr Speaker, if you watch *CNN* and the international news outlets, yesterday, in Iran, I am told that somebody was executed because they suspected him of disclosing information leading to the identity —

Mr First Deputy Speaker: Order!

Let us remember that we are at the Consideration Stage of a Bill.

Mr Ayariga: Mr Speaker—*[Interruption]* — But that question is not even a question. The reason is that what information did the Minister disclose? Yes, what information did he disclose? How did that information disclose the

identity of anybody engaged in a covert operation.

Mr First Deputy Speaker: Hon Member, I think we have come to a point that — Hon Jerry Ahmed, you do not have the floor.

Mr Shaib: The Minister said that Ghana is now the base for America to attack—

Mr First Deputy Speaker: Hon Jerry Ahmed, you do not have the floor. I think we will have to put the question on the issue so that we do not —

Yes?

Mr Ayariga: Mr Speaker, Ghana became the base for America to launch operations because they passed an agreement. You, Mr Nitiwul, while you were a Minister for Defence —

Mr First Deputy Speaker: Hon Members, let us not deviate from the Bill.

Order!

I intend not to open debate on this issue.

Question put and amendment agreed to.

Clause 38 Ordered to stand part of the Bill.

Mr Nitiwul: Mr Speaker, he mentioned my name.

Mr First Deputy Speaker: Hon Nitiwul, you do not have the floor.

Mr Nitiwul: He mentioned my name.

Mr First Deputy Speaker: You do not have the floor.

Mr Nitiwul: Mr Speaker, let him expunge it. Mr Speaker, I have the right to respond, otherwise it should be expunged. Mr Speaker, because I have never signed for a base in Ghana. Never have I.

Mr First Deputy Speaker: Hon Nitiwul, with all due respect, you are a senior. I give you that particular respect. So in a situation where you put on a microphone and begin to talk without being given the audience or catching the eyes of the Speaker, it is delving into a different realm altogether. I decided to truncate the argument because we are trying to deviate from the Bill and our consideration into other tangential matters.

Clause 39 — Disclosure before Parliament

Dr Agyeman-Rawlings: Mr Speaker, I beg to move: Amendment proposed — *Delete*

Alhaji Muntaka: Mr Speaker, I do not understand why the Chairperson is proposing this. This is because if you look at the disclosure before Parliament and what it entails, I think that it is only fair that it is here. It has been there all these years. I do not know why we want

to take it out. If the Chairperson could give some explanation why we want this.

Mr First Deputy Speaker: Well, Hon Minister, we have progressed to establish a Committee and the Members of the Committee are being enjoined by our rules to take oath before they can sit at a committee to listen to the officers from the National Security. So if by this Act you are saying that an officer or employee of a security and intelligence agency under this Act shall not be required to produce before Parliament a document or any other evidence, when the Speaker satisfies that the document or any other evidence belongs to a class of —

Hon Minister, you are right. So why are you trying to delete this?

Dr Agyeman-Rawlings: Mr Speaker, the Committee in consultation with three of our consultants actually deliberated on this issue extensively. The concern was that this specific provision would give a way out for a decreased Parliamentary oversight. It was the opinion of the Committee, not just of myself, that this would be problematic in terms of Parliamentary oversight and international best practice.

Mr First Deputy Speaker: I beg to differ because it is not every information that can be given to the Committee. That is why there is a leeway here that if giving the information would be prejudicial to the security of the Republic, the Speaker would then order that the information should not be given. So I believe this is a very good buffer.

Mr Boamah: Mr Speaker, there are some safeguards even under the 39 (2), which gives the Speaker or the Council the right to refer such documents to the Supreme Court in accordance with Article 135 of the 1992 Constitution. So with your kind permission, I am sure everybody has the Constitution here, I read:

“135 (1) The Supreme Court shall have exclusive jurisdiction to determine whether an official document shall not be produced in court because its production or the disclosure of its contents will be prejudicial to the security of the State or will be injurious to the public interest.”

It is very important we keep this provision, Mr Speaker.

Mr Ayariga: If the 1992 Constitution confers on the Supreme Court the ultimate authority to determine whether information should be disclosed or not, is it within our purview to go and confer on the Speaker the authority to decide? Something that the Constitution says can only be decided by the Supreme Court?

That is what the Constitution says, that if there is an issue about whether or not a document should be disclosed, that it has to go to the Supreme Court, what authority do we have to sit here and amend the Constitution and say, no, the Speaker can make such a determination and it is only if we disagree with the position of the Speaker or the Council, then we go to the Supreme Court?

The Constitution is clear that any time there is a dispute — So, if officers appear before a parliamentary Committee and say we cannot disclose this information, it is not for the Speaker to say, you can disclose this information. It is only the Supreme Court. So I agree with the Committee that that should be dropped because we will be interfering with the powers of the Supreme Court by conferring that authority on the Speaker of Parliament. I think the Committee is right in this regard.

Mr First Deputy Speaker: The Speaker's certification is also constitutional. Let us look at Article 121 (2) (a). It reads:

“(2) A public officer shall not be required to produce before Parliament a document where-

(a) the Speaker certifies-

(i) that the document belongs to a class of documents, the production of which is injurious to the public interest”

5:18 p.m.

So, this particular provision is in tandem with Article 121 (a) of the 1992 Constitution, so it does not derogate from the Constitution. Deleting it will rather contravene the provisions of the Constitution. So, the law does not make it an exclusive preserve.

Mr Ayariga: I think Article 121 of the 1992 Constitution makes it easy for all of

us. Article 121 consciously distinguishes between information injurious to the public interest and information of a national security character. So here, we are dealing with a legislation on national security. We are dealing with a class of information that relates to national security. So even in Article 121 of the 1992 Constitution, the class of information related to national security is not even within the purview of the Speaker.

It is only information that is potentially injurious to the public interest. It can be information about anything. It can be a moral issue, health issue, sanitation, or any other matter. It may have nothing to do with disclosing information about the identity of agents, disclosing information about covert operations *et cetera*. Even with that, within the constitutional architecture of Article 121, it is the preserve of National Security Council and not the Speaker. Mr Speaker, with your permission, I read Article 121 (3):

“Where there is doubt as to the nature of a document, such as is referred to in clause (2) of this article, the Speaker or the National Security Council, as the case may be, shall refer the matter to the Supreme Court...”

So again, there are two classes of information: information injurious to the public interest and information injurious to national security. So, what Article 121 (3) does is to say that in these two instances, if it is information injurious to national security, refer it to the Supreme Court. If it is information injurious to the

public interest refer that also. So, the two tracks are still maintained in Article 121 (3).

My argument is that we are passing a legislation on National Security, and not every matter injurious to the public interest. So automatically, we are dealing with information under article 121 (2) (b). There is a matter injurious to the public interest. It may not be about intelligence operations, covert operations or intelligence related matters. It can be a matter about the identity of anything or even a doctor, not a covert operation. It can be about the ownership of a Maybach, a jet, or anything.

But this Bill is about covert operations, intelligence officers, and their identities, and we are seeking to protect that. We are saying that even before a Committee, we cannot compel intelligence officers to provide the information. If we want to compel them to provide information, we will have to go to the Supreme Court if they say that it is protected information. If we reduce it and say a Speaker can give that clearance, we will be downgrading an arrangement that the 1992 Constitution has put in place. That is my strong conviction.

Mr First Deputy Speaker: Hon Majority Leader, with all due respect, if you look at the provision, it says the Supreme Court, but it is the same 1992 Constitution, knowing very well that the Supreme Court may not have exclusive preserve in this matter, that gives room in Article 121 for a Speaker to certify. If

the legislation is in all force with the Article 121, we cannot say that legislation should be deleted such that if there is any matter before the Committee, the Speaker will not certify as indicated in the Constitution, but it must go before the Supreme Court. On this note, I beg to disagree with you that this particular provision staying in the Bill will not offend the spirit and letter of the Constitution.

Dr Agyeman-Rawlings: Mr Speaker, with regards to this specific provision, international best practice regarding the governance of national security and intelligence agencies is exactly why we are concerned with this provision. At the very least, we may make reference to Article 121 of the 1992 Constitution because this specific provision is not Article 121. It has given a slightly different interpretation, which we are concerned will serve as a loophole.

Prior to the establishment of the Committee on Security and Intelligence, I was a Member of the Committee on Defence and Interior, and I am very much aware of the number of times we were not given access to very important information based on the fact that we were supposed to be a Committee that did not have that level of clearance. So, the concern with this provision is that our ability to conduct our oversight role as Parliament might be impaired by the inclusion of this provision in the Act.

Mr Speaker, this was one of the provisions that was extensively discussed with external

consultants who are security sector governance experts.

Mr First Deputy Speaker: So, Hon Chairperson, if you delete it in this law—but the provision in the 1992 Constitution, which is the supreme law of the land above and beyond which no further law exists, stays as it is, can the Speaker of Parliament certify that the document belongs to a class of documents, the production of which is injurious to the public interest, therefore it should not be disclosed before the Committee, based on the provisions of the Constitution? So, if the Speaker, based on the provisions of the Constitution, can do that, what difference does it make if the same provision is in the law? Unless the Constitution is amended.

Dr Agyeman-Rawlings: Mr Speaker, in which case, we have no problem with this being lifted out of the 1992 Constitution as it is, rather than in the form that it is presented in the Bill.

Mr First Deputy Speaker: Yes. So, I will direct the drafters to fine-tune this particular provision in line with Article 121 of the 1992 Constitution of the Republic of Ghana, instead of having it deleted. Therefore, I will put a question subject to the direction to the drafters.

Clause 39 ordered to stand part of the Bill.

Clauses 40 and 41 ordered to stand part of the Bill.

Clause 42 – Regulations.

5:28 p.m.

Dr Agyeman-Rawlings: Mr Speaker, I beg to move, clause 42, subclause (2), *delete* and *insert* the following:

“(2) Without limiting subsection (1), the Regulations may provide for

(a) the operations of the intelligence agencies; and

(b) matters relating to

i. discipline;

ii. reporting procedures;

iii. the scheme of service;

iv. grievance mechanisms;

v. the conditions of service; and

vi. the retirement benefits.”

Mr First Deputy Speaker: Hon Bryan Acheampong, are you on your feet to speak on the amendment?

Dr Bryan Acheampong: Yes, Mr Speaker, we hurriedly went through clause 41 and I do not —

Mr First Deputy Speaker: No, you have to move the item numbered (ix) first; clause 42, subclause (1), line 1, *delete* “may” and *insert* “shall”. Please take the amendment in the item numbered (ix) before (x).

Dr Agyeman-Rawlings: Mr Speaker, I beg to move, clause 42, subclause (1), line 1, *delete* “may” and *insert* “shall”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, move the item numbered (x).

Dr Bryan Acheampong: Mr Speaker, we hurriedly went through clause 41, which I am not too sure if we all understood what we talked about. Now, we are saying that every National Security operative has the powers of a police officer? That is what clause 41 seeks to do. I am not too sure if we read it properly. National Security officers are National Security officers. By saying today that National Security officers now have the powers of police officers in clause 41, I am not too sure if that is what we seek to do.

Mr First Deputy Speaker: Hon Member, with all due respect, when we got to clause 41, I asked the Chairperson of the Committee whether there is an amendment. The Chairperson said there was no proposed amendment to clause 41 and I said it is for the consideration of the House. If you have a proposed amendment, all you need to do is be on your feet and propose the amendment. So, what then is your amendment?

Dr Bryan Acheampong: Mr Speaker, clause 41 is conferring the same rights and powers conferred by law on police officers in the performance of their functions on National Security operatives. So, the staff of the Office of

the National Security Co-ordinator now have the powers of police officers.

Mr Ayariga — rose —

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: Staff of the Office of the National Security Co-ordinator are not personnel or agents of a Security and Intelligence Agency. We have defined Security and Intelligence Agencies, and that definition did not include the staff of the office of the National Security Co-ordinator. So, all those people who are engaged and are personnel of the Office of the National Security Co-ordinator are not — They are not the categories of people that are being given the same status as police officers. We are talking about the professional officers in the recognised Security and Intelligence Agencies, properly so-called.

Mr First Deputy Speaker: What is your amendment? Can we make progress with the explanation?

Dr Bryan Acheampong: Mr Speaker, the definitions are nowhere to be found. If we are talking about clause 41, it is clear that it is subject to an officer or employee of the Security and Intelligence Agency.

Mr First Deputy Speaker: Well, hold it. When we get to clause 43, interpretation, you can ask that we provide a definition for it. That solves the problem.

Alhaji Muntaka: Mr Speaker, I see what he trying to draw attention to and he is right. The emphasis should be on the Intelligence Agency, not Security and Intelligence. But when we say the Intelligence Agency, it has been defined as both internal and external and restricts it to only this category. So, an officer of the NIB can effect an arrest and do all those things, but not the general Security and Intelligence Agencies. So, what we simply may have to do is to delete the “Security and” and leave it as “Intelligence Agency”. So, clause 41 may read:

“Subject to the Constitution, an officer or employee of an Intelligence Agency has, in the performance of functions under this Act, the same rights and powers conferred by law on a police officer in the performance of the function and has the same protections.”

So that we restrict it to only the internal and external agencies.

Question put and amendment agreed to.

Clause 41 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: So, Chairperson, you may now move the amendment in the item numbered (x) as advertised.

Dr Agyeman-Rawlings: Mr Speaker, I beg to move, clause 42, subclause (2), *delete* and *insert* the following:

“(2) Without limiting subsection (1), the Regulations may provide for

(c) the operations of the intelligence agencies; and

(d) matters relating to

i. discipline;

ii. reporting procedures;

iii. the scheme of service;

iv. grievance mechanisms;

v. the conditions of service; and

vi. the retirement benefits.”

Mr First Deputy Speaker: Hon Members, any proposed amendments?

Question put and amendment agreed to.

Clause 42 as amended ordered to stand part of the Bill.

Clause 43 — Interpretation

Dr Agyeman-Rawlings: Mr Speaker, this specific amendment proposed would be predicated on the decision of the House regarding whether there will be a Deputy National Security Coordinator maintained in the Act.

Mr First Deputy Speaker: Well, by the law that we have passed, is there a position for Deputy National Security Coordinator?

Dr Agyeman-Rawlings: No.

Coordinating Director and a Municipal Coordinating Director.”

Mr First Deputy Speaker: So, this amendment becomes otiose.

Question put and amendment agreed to.

Dr Agyeman-Rawlings: Very well, we will abandon this amendment.

Mr First Deputy Speaker: The item numbered (xv).

Mr First Deputy Speaker: Very well, then, take the item numbered (xii).

Dr Agyeman-Rawlings: Definition of “district security council”, *insert* the following:

Dr Agyeman-Rawlings: I think we will have to abandon this proposal on clause 43 as well.

“district security council” includes a metropolitan security council and a municipal security council.”

Mr First Deputy Speaker: Also abandon?

Question put and amendment agreed to.

Dr Agyeman-Rawlings: Yes.

Mr First Deputy Speaker: Then we will go to the item numbered (xiii).

5:38 p.m.

Dr Agyeman-Rawlings: Mr Speaker, I beg to move, definition of “District

Mr First Deputy Speaker: Yes, Chairperson of the Committee, (xv)?

Chief Executive”, *delete* and *insert* the following: “District Chief Executive” includes a Metropolitan Chief Executive and a Municipal Chief Executive.”

Dr Agyeman-Rawlings: Mr Speaker, Amendment proposed – Definition of “district security council”, and *insert* the following:

Question put and amendment agreed to.

“district security council” includes a metropolitan security council and a municipal security council.”

Mr First Deputy Speaker: The item numbered (iv).

Mr First Deputy Speaker: Hon Members, any further amendments?

Dr Agyeman-Rawlings: Mr Speaker, I beg to move, *add* the following new definition:

Question put and amendment agreed to.

“District Coordinating Director” includes a Metropolitan

Mr First Deputy Speaker: Hon Members, if you would not do the voting,

at least, remain silent and listen to the proceedings. Hon Gomado, kindly resume your seat.

Yes, Chairperson of the Committee, clause 43, amendment (xvi).

Dr Agyeman-Rawlings: Amendment proposed, Definition for “Minister”, line 1, after “Minister”, *delete* “responsible” and *insert* “assigned responsibility for”

I so move.

Mr First Deputy Speaker: Hon Members, it is for your consideration. Any further amendments?

Question put and amendment agreed to.

Mr First Deputy Speaker: Clause 43, amendment (xvii) standing in the name of Osahen Afenyo-Markin.

Yes, Hon Jerry Shaib, in view of the fact that his amendment regarding the national security threat has not been carried, do we still provide definition for national security threat?

Mr Shaib: Mr Speaker, I do not know if that has been captured as part of the definitions, if not, then my advice is to abandon it.

Mr First Deputy Speaker: Very well. The amendment is abandoned. We then move to propose amendment (xviii). Yes, Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, amendment proposed — *Add* the following new definition:

“security services” mean the services connected with national security as determined by the Council;”.

I so move.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment?

Question put and amendment agreed to.

Clause 43, as amended, ordered to stand part of the Bill.

Clause 44 — Repeal and savings.

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, amendment proposed: Subclause (2), line 6, after “until”, *insert* “revoked,”

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment?

Question put and amendment agreed to.

Clause 44 ordered to stand part of the Bill.

Clause 45 — Consequential amendments.

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, amendment proposed; Subclause 3, *delete*.

Mr First Deputy Speaker: It is for the consideration of the House.

Question put and amendment agreed to.

Clause 45 ordered to stand part of the Bill.

Clause 46 ordered to stand part of the Bill.

The Schedule — Forms of oath.

Mr First Deputy Speaker: Yes, Chairperson of the Committee, any proposed amendment?

Dr Agyeman-Rawlings: Yes, Mr Speaker. “Oath of Secrecy on Taking Office”, line 3, *delete* “an” and *insert* “any”.

Question put and amendment agreed to.

Oath of Office ordered to stand part of the Bill.

Mr First Deputy Speaker: Oath of Allegiance. In the absence of any advertised amendment I will put the question so that when we come to the Oath of Secrecy, you can propose your amendment.

Oath of Allegiance ordered to stand part of the Bill.

Mr First Deputy Speaker: Now oath of secrecy on leaving office.

Yes, Chairperson of the Committee?

Dr Agyeman-Rawlings: Mr Speaker, are you making reference to the Oath of Secrecy on leaving office?

Mr First Deputy Speaker: Yes, the Schedule. That is where you have your amendment proposed.

Dr Agyeman-Rawlings: The amendment proposes for taking office, not leaving office, Mr Speaker.

Oath of Secrecy on Leaving Office ordered to stand part of the Bill.

Mr First Deputy Speaker: Now let us come to Oath of Secrecy on Taking Office.

Dr Agyeman-Rawlings: Mr Speaker, amendment proposed; Oath of Secrecy on Taking Office, Line 3, *delete* “an” and *insert* “any”.

Mr First Deputy Speaker: It is for the consideration of the House.

Mr Patrick Yaw Boamah: Mr Speaker, does it mean that you will have to be under this oath in perpetuity?

Mr First Deputy Speaker: Yes.

Mr Boamah: But we have National Security Co-Ordinators who have written books, Quantson and co.

Mr First Deputy Speaker: But they did not do a disclosure to offend the law.

5:48 p.m.

Mr Boamah: All right. Thank you, Mr Speaker.

Question put and amendment agreed to.

Mr First Deputy Speaker: Let us come to the Long Title. There are some outstanding clauses for the Committee to work on. If they have done it, let us go back and take it.

Now, clause 14 was in the name of Hon Kojo Oppong Nkrumah. Would a Member move the amendment on his behalf? Clause 14 has to do with the appointment under Article 195 of the 1992 Constitution. He is of the view that it should be under Article 70 instead of 195. And I think by a debate of the House, we have come to a conclusion that doing it under Article 70 will give the National Security Co-Ordinator an independent constitutional status like those there, which may in effect be problematic because they are not creating the office as an independent constitutional body. That is why we have the ministerial responsibility.

Mr Shaib: I will pray that a vote is taken so at least that is captured.

Mr First Deputy Speaker: Very well.

Question put and amendment negated.

Mr First Deputy Speaker: Now, clause 16, subclause (2), *delete*. The debate is to continue.

Hon Members, the floor is now open. Hon Members, I think this was also clear. The essence of the deletion is that appointment under Article 195 is in two-fold, either the President will do it himself and clause 2 of that Article says the President can delegate. So, because of that, the Committee does not deem it necessary having it maintained here. Once the appointments are going to be under Article 195, the (1) and (2) shall apply. That is the essence for the deletion.

Hon Members, I will put the question on clause 16.

Question put and amendment agreed to.

Clause 16 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: Now, clause 17. This amendment is in the name of Hon Kojo Oppong Nkrumah which has been moved and deferred. Now, debate is to continue. The floor is open for debate.

Yes, Minister.

Alhaji Muntaka: Mr Speaker, sorry, at clause 16, you said we were deleting sub-clause 2.

Mr First Deputy Speaker: Yes.

Alhaji Muntaka: With the greatest of respect, Mr Speaker, the (2) says “The President shall, in accordance with clause (2) of Article 195 of the 1992 Constitution, delegate the power of appointment under this section.” Is that what we are deleting?

Mr First Deputy Speaker: Yes, and then clause (1) will read: “the President shall, in accordance with article 195 of the Constitution, appoint...” and article 195 is in (1) and (2). So once the President is appointing under the whole of article 195, he can delegate under 195 (2).

Alhaji Muntaka: Sorry, Mr Speaker. Then I come to clause 17.

Mr First Deputy Speaker: Yes.

Alhaji Muntaka: I wish my Colleague, Hon Kojo Nkrumah was here. Mr Speaker, the reason his amendment may be problematic for us is that, for example, if you look at the external agencies, he has gone ahead to elaborate virtually all the details that they do. It is a huge exposure as compared to we putting them together and saying that this is done and, in that way, find a way of neatly not really overexposing our external intelligence gentlemen and ladies. For example, if you look at his proposed amendment and in particular on (2)(f) which says: “conduct due diligence on foreign entities and high-profile personalities including Ambassadors designate or High Commissioners designate and profile

persons of interest;”. Which country will allow its external intelligence into any meeting? It is not said, but we know all around the world that these are things that are done. So, Mr Speaker, I will be happy if we withdraw this amendment and allow it to stand as in the Bill, because what we have in the Bill carries the sense of what we really want them to do without necessarily exposing the fine details of the activities they carry. So, I would be grateful that we put the question on this and be able to put this to rest. Thank you, Mr Speaker.

Mr Boamah: Mr Speaker, I agree with the Minister for the Interior, because there is nowhere in the world that you legislate and expose people who gather intelligence for you. It is for good reason that officers at the research department are placed under the Ministry of Foreign Affairs, even though they do not report directly to the Minister for Foreign Affairs. They report to the National Security Co-Ordinator or the National Security Council.

Nobody does that and that is why there are certain things we cannot even say on the Floor as to what they do and where they are placed even at our missions. Because if their cover is blown, they cannot even be allowed to enter certain places, because they will need passes to enter certain places. Why will America allow you to enter the White House if you are designated as an external intelligence officer? Yes, their cover is blown. So, no civilised jurisdiction legislates and elaborates on this, and I think it has to be struck out. Thank you.

Mr First Deputy Speaker: Well, Hon Members, if it is not withdrawn, I will be compelled to put the question. Hon Members, I will put the question on the proposed amendment by Kojo Oppong Nkrumah to clause 17.

Yes?

Mr Shaib: Mr Speaker, I think that we would abandon same.

5:58 p.m.

Mr First Deputy Speaker: Very well, the proposed amendment is abandoned. I will then come to clause 17, where there is an amendment listed under the item numbered iv. It is in the name of Osahen Alexander Kwamena Afenyo-Markin.

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, I beg to move, amendment proposed – subclause (1), paragraph (a), line 3, after “constitute” delete “threats to national security” and insert “a specific and identifiable threat to national security as defined under this Act”

Dr Bryan Acheampong: Mr Speaker, I am not too sure if we abandoned Hon Kojo Oppong Nkrumah’s amendment.

Mr First Deputy Speaker: Hon Members, we are now talking about clause 17, as in iv.

Dr Bryan Acheampong: Respectfully, Mr Speaker, I seek your leave for us to revisit some sections of Hon Oppong Nkrumah’s amendment.

Mr First Deputy Speaker: Well, Hon Members, if there is a clause under consideration and we have not finished that clause and you want to take me back, I have a problem. So, wait, when we have dealt with this clause, then you can see whether you can review the decision of the House, because it is not my decision.

Question put and amendment negatived.

Clause 17 ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, Hon Bryan Acheampong.

Dr Bryan Acheampong: Mr Speaker, I seek your leave to revisit some sections of the amendments as made by Hon Oppong Nkrumah and if added to the functions of the internal and external security agencies, it will be helpful.

Mr Speaker, for example —

Mr First Deputy Speaker: Hon Members, with all due respect, this amendment has been abandoned. So, having abandoned the amendment, there is nothing before us to propose an amendment to. So, you have to go to the original rendition. And if you have a proposed amendment to the original rendition, you do so because that is what stands before us.

Dr Bryan Acheampong: Thank you, Mr Speaker, for the direction.

Mr Speaker, I seek to make some further amendments in terms of additions

to the functions of the internal and external security agencies. Specifically, to the internal security agencies, to include “provide intelligence to aid in the formulation of government policies and programmes”, which is something that they do anyway. It seeks to make it a function.

Mr Speaker, there is a challenge with collaboration when it comes to the national security agencies. And Hon Kojo Oppong Nkrumah’s amendment of (g), I want to lift the whole line to be inserted, “conduct investigation in collaboration with relevant security agencies”. I think that is a good addition.

Mr Speaker, we all know that national security also supports the protection of VVIPs. It is something that they do. And most of the time, we find the police having challenges with national security operatives during the protection of VVIPs.

So, the provision that says that “to support the protection for the presidency”, if we go to the presidency, we have a lot of security officers there, who always have challenges with the police and the soldiers there. So, security and intelligence agencies should support the provision of security protection for the presidency, visiting diplomats and other persons with diplomatic immunity and designated public officials.

And then also with the (i), which is also very important and has become a thorny issue of where the National Security Co-ordinator takes their instructions from — I would want us to

insert, “perform any other functions for intelligence purposes as directed by the Council or the Minister”. That insertion should be made as part of the functions.

Question put and amendment negatived.

6:08 p.m.

Mr First Deputy Speaker: Hon Members, I would direct the drafters to provide a definition for national security threats in the Interpretation.

Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may we take the item numbered 19 at page 22 of the *Order Paper*?

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed Shaib, the application is to take the procedural Motion numbered 19.

Mr Shaib: Mr Speaker, I see the Minister being a part of this process. That is supposed to be commended, so I am not sure I would have to object to anything.

Mr First Deputy Speaker: Yes, Minister for the Interior, you may move the Motion numbered 19.

MOTION

Suspension of Order 172 (1)

Minister for the Interior (Alhaji Muntaka Mohammed-Mubarak): I beg to *move*:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that when a Bill has passed through the Consideration Stage, the Third Reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Security and Intelligence Agencies Bill, 2025 may be *moved today*.

I so move, Mr Speaker.

Mr First Deputy Speaker: Motion moved. Any seconder?

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, I rise to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the Motion numbered 20.

Mr First Deputy Speaker: Yes, Deputy Minority Whip?

Alhaji Muntaka: Thank you, Mr Speaker —

Mr First Deputy Speaker: Wait. We are seeking clearance.

Mr Shaib: Mr Speaker, you can tell the speed. Against the backdrop that we just allowed Motion 19 to proceed, we are minded that everything is carried in a smoother manner, but we should speed cautiously; that is all. We are not opposed.

Mr First Deputy Speaker: Yes, Minister for the Interior?

BILL — THIRD READING

Security and Intelligence Agencies Bill, 2025

Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka) (MP): Mr Speaker, I beg to *move*:

That the Security and Intelligence Agencies Bill, 2025 be now read the Third time.

Mr First Deputy Speaker: Motion ably moved, any seconder?

Chairperson of the Committee (Dr Zanetor Agyeman-Rawlins): Mr Speaker, I rise to second the Motion.

Question put and Motion agreed to.

The Security and Intelligence Agency Bill, 2025 — *read the Third time and passed.*

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we take the item numbered one as advertised on the *Order Paper Addendum*.

Mr Shaib: Mr Speaker, it is very important for people to go by their words and their deeds. We agreed that we are not laying anything today. It is becoming way too many that when people speak, they are the same people that do U-turns. We are not going to do this today.

Mr Speaker, we have been very supportive throughout the period. We are not laying anything. When we even have to wait for two days to elapse for matters to be dealt with, we still let it slide.

Mr First Deputy Speaker: Hon Jerry, I agree perfectly with you. We need to engage. We need to have an understanding. But in the circumstances, I want us to limit ourselves to only the presentation of the Report for distribution to Members as we take the Motion another day.

Mr Shaib: Mr Speaker, you know that naturally, I would not oppose any respectful instruction from you. But Mr Speaker, this cannot be going on. As we speak, they do not even have the numbers; they are not even 30.

Mr Speaker, I will raise quorum. Let them go ahead.

Mr First Deputy Speaker: I am saying so because this will avoid the instances where Members will come and say they do not have the Report ahead of time.

Mr Shaib: Mr Speaker, that is the truth. That is why it should be well prepared.

Mr Speaker, we have done a lot of work today. We sat in for this Security and Intelligence Agencies Act. We have just been able to pass it. We have not had any interruptions and we have not caused any problems. We have been supportive throughout.

Mr Speaker, what is the urgency in all of these?

Mr Dafeamekpor — *rose* —

Mr Shaib: Please, I am on my feet. When I am done, you can speak.

Mr Speaker, against the backdrop that this same Lithium Agreement, we cautioned them, we warned them and they rushed it and we are back here. We are just coming to rush it again.

What is the rush, Mr Speaker?

Mr First Deputy Speaker: Hon Jerry, as for this, it has been presented to the House already and the House referred it to a Committee. Now, it is the Report of the Committee that they are seeking to lay. They are not seeking to lay the Lithium Agreement; it has been laid, referred to a Committee and it is the Report of the Committee that is being laid.

Mr Dafeamekpor: Mr Speaker, let the record reflect that this is not the Agreement that is being laid or presented.

Mr First Deputy Speaker: The argument is that the Report is ready, but if it is not laid, it cannot be distributed.

Mr Dafeamekpor: Yes, my Brother, let us lay the Report of the Committee; this is from the Committee on Lands and Natural Resources.

Mr First Deputy Speaker: Hon Patrick Boamah, if it is not laid, the Report cannot be distributed to Members.

Mr Dafeamekpor: Mr Speaker, may I be heard on this matter?

Mr Speaker, just last week, when I presented the Business Statement, the Minority bemoaned the fact that there are a lot of referrals before Committees that are still outstanding. The Lands and Natural Resources Committee has considered one of their referrals and they are presenting a Report and Hon Jerry says we cannot lay the Report?

I would plead with them to let us lay the Report. Then we can go back to the substantive *Order Paper*. *[Interruption]* Mr Speaker, I brought the *Order Paper* to Hon Jerry over two hours ago. I personally brought it to the Leadership.

So, Mr Speaker, let us proceed to lay it, then we can go back to the substantive *Order Paper* and take the Consideration of the University of Engineering and Agricultural Sciences, Bill, 2026.

Mr Shaib: Mr Speaker, I am not a difficult person. We should not create the impression that — *[Interruption]* —

they are now bringing it to me. Mr Speaker, you can see and they want me to swallow it hook, line, and sinker. Let us go through the process. The rush in pushing everything is becoming way too many. It is just tomorrow.

Let us deal with the University of Engineering and Agricultural Sciences Bill, 2026. We cannot just be laying things and be—*[Interruption]*—Well, but I am talking. I would raise issues of quorum and Mr Speaker is guided.

Mr Speaker, they are not 37. They do not have the numbers to do Business. So, if they want to insist, they can go ahead.

6:18 p.m.

BILL — CONSIDERATION STAGE

University of Engineering and Agricultural Sciences Bill, 2026

Mr First Deputy Speaker: I think we have done this Bill up to a certain clause. Therefore, the *Order Paper* cannot be correct starting from Clause 2.

Let us do this, you can engage during the period. *[Pause]*

Clause 8, is that correct? We are now moving to clause 9. Table Office, guide us. We did Clause 9 and we were moving to Clause 10.

Clause 10 — Disclosure of interest

Clause 10 to 15 Ordered to stand part of the Bill.

Clause 16 — Vice-Chancellor of the University.

Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to move: Subclause (4), line 3, after “term” *insert* “of two years”

Question put and amendment agreed to.

Mr First Deputy Speaker: Very well. This is standing in the name of Osahen Alexander Kwamena Afenyo-Markin. *[Pause]*

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, I beg to *move*, *add* the following new subclause:

“The appointment of the Vice-Chancellor shall be made through an open, competitive and transparent process and the Council shall publish the criteria and outcome of the selection process in the Gazette and in at least two newspapers of national circulation.”

Mr First Deputy Speaker: Hon Jerry Ahmed Shaib, all these processes are regulated by the statute of the university. So why are we saying we should enact it here? Apart from that, all the universities do not have this provision. They are contained in the statute of the university. Why are we bringing this one in the enactment?

Mr Shaib: Mr Speaker— *[Interruption]*— Why is the vote a threat? That is why it is democracy.

Whether he says he wants to vote, it does not affect anybody’s person.

Mr Speaker, I have heard some advice from my Colleague, Dr Kyei. It will be appropriate to abandon same. Thank you.

Clause 16 Ordered to stand part of the Bill.

Clause 17 — Pro Vice-Chancellor of the University

Mr Nortsu-Kotoe: Mr Speaker, I beg to *move*: subclause (3), line 2, after “term” *insert* “of two years”

Question put and amendment agreed to.

Mr Shaib: Mr Speaker, I rise to *move*, subclause (3), *delete* and *insert* the following new subclause:

“(3) The Pro Vice-Chancellor shall hold office for a term of three years and is eligible for re-appointment for one further term only.”

Mr First Deputy Speaker: Well, the difference here is that he is saying the term of office should not be two years, but it should be three years and eligible for another three years. Chairperson, what is your response?

Mr Nortsu-Kotoe: Mr Speaker, this issue was discussed at the Committee level. The Vice-Chancellor has three years for two terms only.

6:28 p.m.

For the position of a Pro-Vice-Chancellor, there are so many professors in the universities and they need to experience this leadership. So, if we make it three each, that means they are going to serve six years just as the vice-chancellor. The Committee feels that if it is two each, it is better, so that many other professors can take advantage of the position and enrich themselves in their knowledge.

Mr First Deputy Speaker: What is the practice in other universities?

Mr Nortsu-Kotoe: Mr Speaker, the standard is two years.

Mr Shaib: We believe that the three years should be seriously considered. A vice-chancellor who is appointed for two years starts their real business or task of managing the affairs of the university and then just around the time, they are expected to be taken out of the office. There is the consideration for them to come again, but that is also not automatic. Even if they are able to do the first three years and they do not even get to come the second three years, then that is actually more acceptable.

This is the case that we have the Constitutional Review Committee that is even asking that we should look at the terms of Presidents, including now extending the period to about five years or more. So, if a pro vice-chancellor is given room to operate for three years and based on the person's capacity and ability to perform, there is the

consideration for that person to come back, then it makes it a better opportunity for the person to perform some more, rather than to give a short term of just two years.

Mr First Deputy Speaker: Well, I asked of the practice in other universities so that we can be consistent. But if you insist. Yes, Deputy Minister for Education?

Dr Clement Abas Apaak: Mr Speaker, we must always look at best practices and what is generally the case in matters of this nature.

As was rightly pointed out by the Chairperson of the Committee, this issue came up for vigorous debate during the Committee's consideration of this proposed Bill. And strongly, we believe that two years, subject to renewal, is the best way to go for a pro vice-chancellor. Clearly, it is not the normal practice that we would have both the vice-chancellor and the pro vice-chancellor in the same institution serving in office for the same number of years. This is not standard practice. There is no reason why we should deviate from what is generally the standard practice.

Dr Fred Kyei Asamoah: Mr Speaker, thank you very much. Even though the standard practice has been two years, we were in this country when some vice-chancellors had to go on retirement before a certain academic calendar ended. We are even engaging Ghana Tertiary Education Commission (GTEC) and Vice Chancellors Ghana (VCG) on this issue.

Mr Speaker, I believe that two years is quite a short time for the vice-chancellors. *[Interruption]* Pro-vice-chancellor — It has got to do with the pro-vice-chancellor, because for vice-chancellors, it is four years per their statute. We are asking that why not vary the normal two years to three years, so we can have overlapping years.

Mr Speaker, the two years aligns with the four years of the vice-chancellor. But if we can have a pro-vice-chancellor understudying the vice-chancellor, in this situation, we can have institutional memory and in addition to the institutional memory, there is an overlap.

So, when there is a change in vice-chancellor, we have the pro-vice-chancellor who will have, at least, a year overlapped understudy of the vice-chancellor. We believe that even though the standard practice for a pro-vice-chancellor in our statutes is two years, let us go for the three years. That will help us with institutional memory and overlapping during the change of vice-chancellors.

Question put and amendment negated.

Clause 17, as amended, ordered to stand part of the Bill.

Clause 18 ordered to stand part of the Bill.

Clause 19 – Composition of academic board.

Mr Nortsu-Kotoe: Mr Speaker, amendment proposed – subclause (1), paragraph (c), *delete* “and Vice-Deans”.

Question put and amendment agreed to.

Mr Nortsu-Kotoe: Clause 19 – amendment proposed – subclause (1), add the following new paragraph:

“(#) the Deans of the three campuses;”.

Mr Speaker, I want to make a further amendment to the proposed amendment to read “the Deans of the various campuses” because we feel that the campuses may increase in the future. So, if we put three there, it would create administrative challenges. So, we will just make it “the Deans of the various campuses”.

Question put and amendment agreed to.

Mr Nortsu-Kotoe: Clause 19 – amendment proposed – subclause (1), paragraph (j), line 1, after “University” *delete* “five” and *insert* “four”

Question put and amendment agreed to.

Clause 19, as amended, ordered to stand part of the Bill.

Clause 20 to 24 ordered to stand part of the Bill.

Clause 25 — Internal organisation of the University

6:38 p.m.

Mr First Deputy Speaker: Chairperson of the Committee?

Mr Nortsu-Kotoe: Mr Speaker, the advertised amendment is in the name of Osahen Afenyo-Markin.

Mr First Deputy Speaker: The Committee has no proposed amendment, I guess.

Mr Nortsu-Kotoe: Yes, we have no proposed amendment.

Mr First Deputy Speaker: Then I will move to give the floor to Osahen Alexander Kwamena Afenyo-Markin to move the amendment to clause 25.

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker. I beg to move the amendment proposed by Osahen Alexander Kwamena Afenyo-Markin, *add* the following new subclause:

“(4) In making arrangements for the internal organisation of the University under subsection (1), the Council shall ensure that gender balance is promoted at all levels of academic and administrative leadership and shall report annually to the Minister on the gender composition of the University’s leadership.”

Mr First Deputy Speaker: The proposed amendment is for the consideration of the House. The question boils down to this: do we have this provision in all the other university Bills

that we have? Well, there should be a good reason for having it in this one.

Mr Shaib: I reckon that we do not have this provision in any of the Acts that we have but that is the point I always want to make. We are always progressing. So, when new things come up, there is a reason to consider them. Maybe the way it has been couched does not make the point we are looking at.

Therefore, it is okay to consider how best to get drafters to support in couching it. This is because we are also promoting gender balance, and there is a need for us to seriously consider affirmative action on some of these things. So, it is critical that some of these things should be considered. Mr Speaker, respectfully, that is the case I want to make on this matter.

Mr First Deputy Speaker: Well, that is the view.

Question put and amendment negatived.

Clause 25 ordered to stand part of the Bill.

Clause 26 — Funds of the university.

We have one amendment standing in the name of Osahen Alexander Kwamena Afenyo-Markin.

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, let me start canvassing before I move the amendment proposed against the

backdrop that this—I believe, is very critical, but let me go ahead.

Mr Speaker, I beg to move an amendment proposed by Osahen Alexander Kwamena Afenyo-Markin, *add* the following new subclause:

“The Council shall, within ninety days after the end of each financial year, publish a statement of income and expenditure on the University’s official website and submit a copy to the Ghana Tertiary Education Commission and to Parliament.”

Mr First Deputy Speaker: How different it is from clause 30, annual report and other reports? Hon Jerry Ahmed Shaib, because this clause says:

“(1) The Council shall within 30 days after the receipt of the audit report submit to the Minister through the Ghana Tertiary Education Commission an annual report covering the activities and the operation of the university for the year to which the report relate.

(2) The annual report shall include the report on the Auditor-General; and

(b) any other information that may be required by the Minister in conformity with the Public Financial Management Act 2016 (Act 921), or that may be relevant to enhance transparency and accountability.

(3) The Minister shall, within 30 days after the receipt of the annual report from the Ghana Treasury Education Commission, submit the report to Parliament with a statement that the Minister considers necessary.

(4) The Council shall submit to the Minister any other report which the Minister may require in writing.”

Mr Shaib: Mr Speaker, clause 30 is very comprehensive, except that it did not capture the bit about the University’s official website. That is part of the accountability aspect being expanded, so there is nothing wrong—Mr Speaker, I agree with you—

Mr First Deputy Speaker: Yes, because the report is coming to the representative of the people. So, before it comes to the representative of the people, it should be on the website.

Mr Shaib: No, Mr Speaker, it did not say that. I am only saying that as part of the recipients, the website should also be—If it is coming to the representative of the people, and it is also published on the official website of the University, it is still encouraging transparency and accountability. That is all. That is why I agree with what is in clause 30. I am only saying that there is also the need to add the other aspect, especially technology—

Question put and amendment negatived.

Clause 26 ordered to stand part of the Bill.

Clause 27 — Borrowing powers

Mr Jerry Ahmed Shaib *on behalf of Osahen Alexander Kwamena Afenyo-Markin*: Mr Speaker, I beg to move this amendment proposed by Osahen Alexander Kwamena Afenyo-Markin, *add* the following new subclause:

“The University shall not borrow an amount exceeding one million Ghana Cedis, or such other amount as Parliament may determine by resolution, without prior approval of Parliament.”

6:48 p.m.

Mr First Deputy Speaker: Hon Jerry Ahmed Shaib, let us look at this. If you go to clause 1, it says:

- (1) There is established by this Act, the University of Engineering and Agriculture Sciences, as a body corporate.

For the performance of the functions of the university, the University may acquire and hold property, dispose of property, and enter into a contract or any other related transaction where there is a hindrance.

So, you have created a juristic person with the capacity to enter into a contract. Can we make a law to say that Jerry Ahmed cannot borrow beyond GH¢1 million, because you are creating a juristic person here? Secondly, all other

universities do not have this particular limitation, except this university that we are establishing by this law.

Mr Shaib: I am guided, but I have always thought that whether or not you are a juristic person, you can be guided. So, as part of the guidance, one of the things to do is not to exceed taking a certain amount of money. And this is part of ensuring that there is value for money. As we consider the Bill today, one of the things that I would have thought that this is securing is to ensure that there is value for money.

Mr First Deputy Speaker: Being a public institution, whatever they want to do, the Office of the Value for Money will deal with them. But to say that they do not have the capacity to go beyond GH¢1 million—

Mr Shaib: Mr Speaker, this has to do with borrowing—

Mr First Deputy Speaker: A whole university that we are creating should not go beyond GH¢1 million. Well, I will put the question.

Mr Shaib: Mr Speaker, first of all, we are not saying that they cannot borrow. But we also know that people can borrow and use the moneys for purposes that would not have been—*[Interruption]*—Yes, you may have a lot of money and you may be thinking that GH¢1 million is small. But Mr Speaker, it is just to ensure some accountability and guidance so that they may have some threshold—

Mr First Deputy Speaker: For the University of Engineering and Agricultural Sciences? Very well. I will put a question on the amendment proposed by Osahen Alexander Kwamena Afenyo-Markin to Clause 27, as in amendment (x).

Question put and amendment negated.

Clause 27 ordered to stand part of the Bill.

Clause 28 to 30 ordered to stand part of the Bill.

Clause 31 — Exemption from Taxes, Duties and Other Charges

Mr First Deputy Speaker: Yes, Chairperson of the Committee.

Mr Nortsu-Kotoe: Mr Speaker, the Committee proposes no amendments.

Mr First Deputy Speaker: Very well. We have a proposed amendment standing in the name of Osahen Alexander Kwamena Afenyo-Markin.

Mr Shaib: Mr Speaker, amendment proposed – *add* the following new subclause:

“The University shall, in its annual report, disclose the estimated monetary value of all tax exemptions and waivers granted under subsection (1) in the preceding financial year.”

Mr First Deputy Speaker: Hon Jerry Ahmed Shaib, I know the difficulties you

are facing. This particular provision makes reference to the Exemption Act, 2022 (Act 1083). It says that:

“The University is exempt from the payment of taxes, duties and other charges that the Minister responsible for Finance may, in writing determine, with the prior approval of Parliament in accordance with the Exemption Act, 2022 (Act 1083)”.

So, if Parliament has approved a tax exemption for an institution within a period of one year, do you still refer to that as an estimate by the rendition that you are proposing?

Mr Shaib: Mr Speaker, I think I will abandon the proposed amendment.

Mr First Deputy Speaker: I will put a question on clause 31.

Clause 31 ordered to stand part of the Bill.

Clause 32 — Status of the University.

Mr First Deputy Speaker: Yes, Chairperson of the Committee.

Mr Nortsu-Kotoe: Mr Speaker, no advertised amendments.

Mr First Deputy Speaker: Hon Members, we have amendments standing in the name of Osahen Alexander Kwamena Afenyo-Markin.

Yes, Hon Shaib?

Mr Shaib: Amendment proposed – add the following new subclause:

“The Council shall, within six months of enacting or amending any Statute of the University, lay a copy of the Statute or amended Statute before Parliament for information.”

I so move.

Mr First Deputy Speaker: Hon Shaib, very soon, probably we will propose an amendment that Executive Instruments should be laid before Parliament.

Mr Shaib: Mr Speaker, if it so be, we may have to look at it.

Mr First Deputy Speaker: This is not a subsidiary legislation by way of Constitutional Instrument or Legislative Instrument. This is a statute of the University, and the statute of the University would have to come to Parliament under Article 11 of the Constitution? Why?

Hon Kyei, you have been in that field.

Dr F. K. Asamoah: Mr Speaker, what we are saying is just for information, but not for approval. Because the statute is what operationalises the Act for the University, just like we have other agencies bringing to Parliament their legislative instrument for approval. And with that, we do not debate it. So, this is for information purposes, and I believe it would not hurt, because we pass the law anyway.

Mr First Deputy Speaker: So, how is it going to be done, and pursuant to which law? Is it pursuant to this law? And, are they coming to lay it? And they lay it and that is the end? A document is laid before Parliament and that is the end? How is Parliament going to be informed about it?

I believe that we should draft this particular law in line with the existing universities laws. So, for instance, the University of Engineering and Agricultural Science would bring their statute before Parliament while all other universities in the country do not bring their statute before Parliament.

6:58 p.m.

So, will that not even amount to discrimination?

Dr F. K. Asamoah: Mr Speaker, I believe most of the amendments that we have seen in the recent renditions of the University Acts are due to changes that we have envisaged. So, if we are able to make one change, it will affect the subsequent Acts that will be debated and acted on here in this Chamber. So, it looks like we are all immune to new proposals that are coming, which we believe could be adopted in future Acts for our universities.

Mr First Deputy Speaker: Hon Member, you know there is some sort of autonomy at where you are coming from when it comes to our universities.

Dr F. K. Asamoah: Mr Speaker, I believe in the academic freedom but it

will not in any way interfere with academic freedom. Also, I believe that we have passed this Bill as to how it is being operationalised. I believe that in the thinking of the proposal of the amendment, he is saying that even though we have passed this Bill, we do not get to see how it is operationalised. We know it is operationalised through the statute for the universities. Here is a case where we are having issues between GTEC and some universities. So, Mr Speaker, let us consider it, in my opinion.

Mr First Deputy Speaker: So, a statute of a university will vary from one university to another? They all do not have a general statute?

Dr F. K. Asamoah: Mr Speaker, the statutes vary. They do not have the same.

Mr First Deputy Speaker: So, it means that the University of Engineering and Agricultural Sciences would bring their peculiar statute to Parliament and that statute is not a statute of general application to everybody in the country but peculiar to that particular university? Other universities will not bring the same thing and we will say that we are making fair laws as the representative of the people? Hon Members, let us look at it that way.

Mr Shaib: Mr Speaker, it is alright to take a vote on it.

Mr First Deputy Speaker: Very well.

Question put and amendment negatived.

Clause 32 as ordered to stand part of the Bill.

Clause 33 to 37 ordered to stand part of the Bill.

Mr First Deputy Speaker: Clause 38?

Mr Dafeamekpor: Mr Speaker, it is 7:00 p.m. May I pray that we end consideration?

Mr First Deputy Speaker: We actually have only two proposed amendments.

Mr Dafeamekpor: Yes, but Mr Speaker, they are in respect of clauses 38 and 40.

Mr First Deputy Speaker: Yes, so 38 to 40 are two clauses. So, we can end it here and leave the Bill for Second Consideration. Then we will not move the Motion for Third Reading. We will leave it for any Second Consideration.

Mr Dafeamekpor: All right, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed Shaib, you may move Osahen Alexander Kwamena Afenyo-Markin's amendment in clause 38.

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, thank you for the opportunity again. I rise to move an amendment proposed by Osahen Alexander Kwamena Afenyo-Markin and this is in reference to clause 38.

Amendment proposed – *add* the following new subclause:

“(#) No officer or authority of the University shall penalise, dismiss or otherwise prejudice a member of the academic staff on account of views expressed in the course of academic work, teaching, research or publication, and any such action shall be voidable at the instance of the affected person before the Appeals Board.”

Mr Speaker, I so move.

Mr Nortsu-Kotoe: Mr Speaker, what the Minority Leader is seeking to propose is already captured in clause 39, anti-discrimination. So, if you read the whole of clause of 39, what he is seeking to do here is already captured. So, Mr Speaker, he should just abandon it.

Mr First Deputy Speaker: Yes, Hon Member, clause 39 is very elaborate or should I still put the Question?

Mr Shaib: No, Mr Speaker, not necessary. I was hoping you were going to read clause 39 because I do not have a copy of that.

Mr First Deputy Speaker: All right, clause 39 reads:

(1) Without limiting the power of the university to adopt affirmative action policies, the University or an officer of the University shall not discriminate against a person on the basis of race, ethnicity, origin, political opinion, colour, gender,

occupation, religion or creed, disability, social or economic status of the person to determine whether the person is to be

(a) admitted as a student of the University;

(b) registered as a student of the University;

(c) permitted to graduate from the University;

(d) appointed as academic staff or other staff of the University;

(e) promoted as academic staff or any other staff of the University; or

(f) granted an advantage, a privilege or any other benefit accorded to other persons.

(2) For the purposes of this section,

(a) “discriminate” means to give different treatment to different persons attributable only or mainly on the grounds stated in subsection (1); and

(b) “officer of the university” includes

i. a Principal Officer;

ii. a staff;

iii. an agent;

iv. a servant; or

- v. any other person performing or acting in an official capacity for or on behalf of the University.

That is what clause 39 is talking about.

7:08 p.m.

Mr Shaib: Yes, Mr Speaker, that is well said, except that clause 39 talks about discrimination, but which obviously answers the question on prejudice, but did not consider—I do not know if we would see “penalise” or “dismiss” as part of discrimination because clause 39 fully talks about discrimination and its types.

Mr First Deputy Speaker: But here, you are not also talking about any punishment; you said on account of views expressed in the course of academic work. So, if you express your view in the course of academic work and they are punishing you, do you not think this provision is prohibiting?

Dr F. K. Asamoah: Mr Speaker, this amendment proposed here is reinforcing academic freedom and even though academic freedom is not an absolute freedom, here, it is separated from the discrimination clause that we have in 39, where this one is proposing further to the academic work that one may do, research work that one may do and teaching that one may be doing in the academic environment.

So, Mr Speaker, respectfully, it is not the same as the provision that we have in clause 39.

Mr First Deputy Speaker: Now, if you even go to 40, it is indicated clearly in circumstances of this nature that you envisage the available procedures.

Question put and amendment negatived.

Clauses 38 and 39 ordered to stand part of the Bill.

Clause 40—Dispute Settlement.

Mr First Deputy Speaker: Hon Jerry Ahmed, we have a proposed amendment standing in the name of Osahen Alexander Kwamena Afenyo-Markin.

Mr Jerry Ahmed Shaib on behalf of Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, that is correct.

Mr Speaker, I beg to move, amendment proposed – Add the following new subclause:

“A decision of the Appeals Board shall be communicated to the parties in writing within thirty days of the conclusion of the hearing and any party aggrieved by the decision of the Appeals Board may appeal to the High Court.”

Mr First Deputy Speaker: Yes, Prof Beyuo, let me hear you first.

Prof Titus Beyuo: Mr Speaker, this is about academics and I know that this will normally be contained in the university statutes. So, for us to be stipulating it in the Act establishing the university, I do not think it is necessary. We will be

going too much into it. We may recommend to them that they make this submission to the university so that when they are drafting their statutes, they can include it. That is, if it is not there, but it should not be in the Act.

Thank you.

Mr First Deputy Speaker: If you look at 40(7), it says that

“The Council shall, by Statute, prescribe the rules and procedure to govern the operation of the Appeals Board;

- i. the appointment and remuneration of the members of the Appeals Board;
- ii. the functions of the chairperson of the Appeals Board;
- iii. the establishment of the secretariat of the Appeals Board, and
- iv. any other relevant matter”.

Question put and amendment negatived.

Clause 40 to 42 ordered to stand part of the Bill.

The Schedule ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, this brings us to the end of the Consideration Stage of the University of Engineering and Agricultural Sciences Bill, 2025.

Yes, Hon Ahmed?

Mr Shaib: Mr Speaker, my Colleague, the Majority Chief Whip, had earlier intimated that we had done the requisite hours. Some of us have not been able to go and break our fast and we have been sitting in this meeting.

Mr Speaker, respectfully, I think this time we are doing the Lent and Ramadan, if one is not doing Lent, one is doing Ramadan —

Mr First Deputy Speaker: I am not fasting, but I will follow you to go and break the fast.

Mr Shaib: Thank you very much, Mr Speaker. So respectfully, this would be the opportune time to respectfully call your attention.

Mr First Deputy Speaker: Hon Members, I think we spent more than five hours. So, adjournment of the House is entirely within my domain.

ADJOURNMENT

The House was adjourned at 7:22 p.m. till Thursday, 19th March, 2026 at 12 noon.

Editor's Note

This *Official Report* was adopted by the House on 27th March, 2026.